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File No.: EXP202202682

SANCTIONING PROCEDURE RESOLUTION

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From the procedure instructed by the Spanish Agency for Data Protection and based on the following
BACKGROUND

FIRST:

On 09/03/2022, the director of the Spanish Agency for Data Protection agreed to initiate investigative actions regarding the GENERAL DIRECTORATE OF TRAFFIC (DGT), following the report prepared by the Legal Office of the Agency on 29/10/2021, submitted on 30/06/2021 by the entity ***CLIENTE.1. The inquiry raised whether, in accordance with the provisions of data protection regulations, the collection and processing of data within the framework of the “Electronic Workshop Book” project (LTE) promoted by the Central Traffic Headquarters represents a processing of personal data, and, if so, what would be the legal basis for legitimizing such processing.

The report includes, among other statements, that according to the DGT's website—www.dgt.es—the LTE is a service aimed at vehicle repair workshops through which they can communicate the repairs or maintenance carried out on vehicles so that citizens are informed through consultation of the DGT VEHICLE Register (“vehicle report”) to, for example, facilitate the correct maintenance of the vehicle in the case of a sale and enhance market transparency.

As stated in the report, the processing of personal data referred to in the aforementioned LTE could be contrary to the provisions of personal data protection regulations.

SECOND:

The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the supervisory authorities

in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

1)

To outline the general starting framework, although access by the inspection service occurred on 23/06/2022, the following proceedings are expressed at the beginning, as an introductory framework:

A) Access was made on 23/06/2022 to the DGT website,

<https://sede.dgt.gob.es/es/vehículos/libro-taller/libro-digital-de-mantenimiento.shtml>, where it is indicated:

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"The digital maintenance book or, simply, workshop book, is a computer tool that allows authorized workshops to record official inspections, mileage, modifications, and repairs carried out on the vehicles entrusted to them by their owners.

Through the 'Vehicle Report' service, anyone can consult the complete report of the vehicle and compare the data on breakdowns and repairs sent by the workshops with the information provided by a seller, reducing fraud. Moreover, the more information available about a vehicle's maintenance, the more reasons a potential buyer will have to acquire a better-maintained vehicle compared to one for which they have no information."

Regarding the operation of the LTE, the previous website mentions:

- The citizen takes a vehicle to the workshop for inspection or repair.
- After carrying out the repair or maintenance on the relevant vehicle, the workshops that have integrated into the system will transfer the vehicle data and the inspections or repairs carried out to the DGT:

- o Name of the workshop where the repair was carried out.

- o Date of the intervention.

- o Vehicle mileage.

- o Type of operation performed (maintenance, repair, partial or total loss).

- o Affected parts and whether they were replaced or repaired.

- The DGT will keep all this data within the file of the repaired vehicle, being available for consultation from that moment on.

- Through the Vehicle Report service, any person, natural or legal, can obtain the complete report of a vehicle detailing the inspections that have been carried out, as well as the mileage at each of them and the workshop where they were performed. The consultation can be made electronically to the DGT or in person at the Headquarters, requiring payment of fee 4.1 of 8.67 euros."

"The information that the workshops send includes the repairs they have carried out on the vehicles, such as repairs on seat belts, replacement of windows, as well as regular maintenance of the vehicles: oil changes, filters, brake pads..."

The existing modalities of "vehicle reports" are indicated, with the public information that may be useful for purchasing a vehicle that the DGT provides regarding a specific vehicle consulted.

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There are several types of reports you can request: 'Reduced', 'Complete', 'Technical Data', 'Liens', 'Vehicles in my name', and 'Unregistered Vehicles'. "Except for the case of the 'vehicles in my name' report, which requires you to be the owner of the vehicle or a third party authorized on their behalf to download it, the rest of the reports are available to anyone, whether or not they are the owner of the vehicle."

"We advise you that before acquiring the vehicle, you request a complete report on it in order to verify the existence of liens, seals, bankruptcy proceedings, or any other administrative or judicial encumbrance.

It will also provide you with information about the validity of the technical inspection or other technical data, including repairs and reviews that have been carried out by the workshops registered in our digital maintenance book or workshop book." A link appears in this last reference to "our digital maintenance book or workshop book."

In the tab titled "What type of reports can I obtain?", it is indicated that the "reduced" report, which is "free of charge," informs: "about the date of the first registration in Spain of the vehicle and whether there is any incident that would prevent the transfer of the vehicle or its circulation."

"The complete report includes all administrative information, identification of the owner, municipality where the vehicle is registered, ITV history, mileage, number of owners, liens... as well as technical data, EuroNCAP score, and maintenance regarding the requested vehicle." It is noted that if a detailed report is to be requested, the "fee 4.1" must be "purchased."

In the information, there are question marks that, when clicked, lead to examples of the information that would be contained. In the "complete report," which spans three pages, there is an informative text about the content of the report, stating that:

"This document constitutes a report from the General Vehicle Registry of the General Directorate of Traffic (Article 2 of the 'Article 2 of RD 2822/1998 of 23/12 of the General Vehicle Registry of the DGT) and that the data reflects the administrative situation of the vehicle at the indicated date and time, adding that the registry 'has a purely administrative nature.'" Among other things, it includes the owner's data, technical information, history of technical inspections with the date performed, expiration date, result, and kilometers, the service, for example, "public: rental without driver," and although it does not provide specific incidents regarding review or maintenance, there is a section called "history of odometer readings" in which it is noted that "The DGT is not responsible for the accuracy of the mileage readings reflected in this report as they have been provided by entities external to the DGT." There is a section on how to interpret the reports, and in "history of odometer readings," it is indicated that "this section compiles all the odometer readings that have been reported to the DGT indicating the date of the reading and its source, whether it be an ITV station, a voluntary declaration from the owner, workshop readings... The DGT is not responsible for the accuracy of the readings as they have been provided by external entities."

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Finally, on the website <https://www.dgt.es/conoce-la-dgt/con-quien-trabajamos/talleres/> as of 23/06/2022, an interactive map can be found with the workshops associated with the "Libro Taller Electrónico" platform. A screenshot of three pages is attached.

B- Access was made on 23/06/2022 to the website <https://librotaller.com/que-es-librotaller/> where it explains "What is 'libro taller'?"

- "A platform developed by the Spanish Confederation of Automobile Repair Workshops and Related Services (CETRAA), in collaboration with the General Directorate of Traffic (DGT), which allows all Spanish workshops to register maintenance and repair actions performed on vehicle safety elements in the DGT servers."

- "The data entered will be available in the DGT Vehicle Report, which any citizen can access regarding a specific vehicle, upon payment of the corresponding fees. However, workshops registered on 'librotaller.com' will be able not only to enter data into the platform but also to consult the repair history of any vehicle by entering a license plate number.

Additionally, when workshops consult the repair record of a vehicle through 'librotaller.com', they will also access the history of Technical Vehicle Inspections (ITV), including both those with favorable results and those that have not been passed. Relevant information is also displayed, such as the reason for the inspection or the vehicle's mileage.

Furthermore, workshops will be able to maintain their own record of the repairs and maintenance they carry out.

Any legally established workshop can register on LibroTaller.com and access the platform after making a one-time payment of €20 for administrative expenses.

The main advantages of this initiative are summarized in the following points.

- Increases transparency in the used vehicle market: it generates and promotes transparency in the used vehicle market, as buyers will be able to consult the repair and maintenance history, thus influencing the valuation of vehicles.
- Reduces fraud: by recording, among other data, the vehicle's mileage, manipulations of the odometers are avoided.
- Helps in the fight against illegal workshops: considering that the fight against clandestine workshops is a priority, among other factors, due to its impact on road safety, it is of great importance that THE IDEX PROJECT (acronym for Incorporation of Data from External Entities – LIBRO TALLER) remains beyond their reach, directly affecting the demand for their services.
- Improves road safety and the environment: this is due to the interest generated by preventive maintenance, which directly influences both elements.

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Additionally, it allows the collection of valuable data for the development of future studies on, among other things, the causality of accidents.

- Facilitates the workshop's activity: by granting it the ability to access the digital maintenance history of any vehicle."

1) On 25/03/2022, a request for information regarding the LTE was sent to the SPANISH CONFEDERATION OF AUTOMOBILE REPAIR WORKSHOPS AND RELATED SERVICES (HEREINAFTER, CETRAA), which, on 18/04/2022, stated:

2.1 "Regarding the operation of Libro Taller, the data provided by the workshop do not have the status of personal data, and in any case, they comply with the structure of the Libro Taller section of the DGT Vehicle Register, which is the recipient of the same."

2.2 Attached is a screenshot with the fields to be filled in "Registration" by a workshop on the platform of the website <https://librotaller.com/>: including:

- Email.
- User name.
- Password.
- Name of the workshop registering.
- CIF/NIF of the workshop.
- DNI of the person.
- Registration number in the Industrial Register.
- Phone.
- Province.

At the bottom of the "Registration," there are two sections, one of which is to check the box "I have read and accept the legal notice and the privacy policy." It indicates the link to the "legal notice" and reproduces its content, which deals with the use of the portal service.

In its section on "confidentiality and data protection," it states that there is automated data processing under the responsibility of CETRAA as a service provider to the user, which is incorporated into a CETRAA file, and that "The user agrees to provide complete and correct information in the registration or subscription form."

In its section on purposes, it states that "they are the maintenance and management of the relationship with the User, as well as information tasks."

In the section on "Data transfer to third parties":

"CETRAA will not transfer user data to third parties." There is a section for exercising rights. In the section on "acceptance and consent," it states that "the user has been informed of the conditions regarding the protection of personal data, accepting and consenting to the automated processing of the same by CETRAA in the manner and for the purposes indicated in this personal data protection policy.

Certain services provided on the portal may contain specific conditions regarding data protection."

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There is no specific section for "privacy policy," as it would be included in the "legal notice."

CETRAA states that the registration of a workshop on the platform has a cost of 20 euros, which is collected by CETRAA.

2.3 CETRAA indicates that once registered, it details "the steps to follow to make an annotation on a specific vehicle in the LTE." It attaches a screenshot of the two main tabs: "data submission" and "search repairs."

In "DATA SUBMISSION," one can:

- "make a new data submission," where fields appear to fill out under the heading "Create incident": vehicle chassis number, license plate, NIVE (Vehicle Identification Number), date and time, vehicle mileage, importance of the action, concepts that, under predefined codes, drop-downs that are not all visible, show mechanical elements such as in this case "vehicle steering" and "description" where no notes are visible.

- tab for: "Submission Registry" to consult pending and completed submissions to the DGT regarding actions taken by that workshop.

CETRAA also shows a tab for "vehicle consultation" where the license plate and chassis number of the vehicle to be consulted are requested, as indicated in the documentation sent to this Agency. As a result of the consultation, the platform provides the vehicle data (license plate, make and model, registration date, and fuel type) and the annotations previously made in the LTE that are registered in the DGT database (date and time, vehicle mileage, type of repair, repair concept, description, and parts) and the history of Technical Vehicle Inspections (ITVs) of the consulted vehicle (ITV date, vehicle mileage, reason, province, and result).

1)

On 25/03/2022, a request for information was sent to the DGT regarding the LTE platform. Having received the notification, it did not respond, so the request was reiterated with collection on 06/05/2022.

The DGT responded on 02/06/2022, as follows:

3.1

"The General Directorate of Traffic provides technical inspection stations and vehicle repair agents with the possibility to communicate those repairs and interventions carried out on them that impact road safety. It reiterates the advantages of installing an electronic workshop book: road safety emphasizing the advantages for individuals with low incomes acquiring the vehicle, obtaining statistics with transparency in the buying and selling process including control of malpractice in odometer manipulation.

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It provides a series of data and statistics related to mileage manipulation by vehicle age.

3.2 "The workshops integrated into the vehicle maintenance communication service record and communicate to the DGT the information on the repairs and maintenance they carry out. Citizens thus

have knowledge of the repairs and maintenance performed on a vehicle that have been previously recorded in the electronic maintenance book.

This information is public, so repairs and interventions carried out on any vehicle can be consulted, although only the actions performed by workshops integrated into the electronic maintenance book service will appear, considering that the incorporation of workshops into the electronic maintenance book project is voluntary.

It reiterates what is stated on its website that being able to consult the maintenance and repair history provides transparency to the vehicle buying and selling market and promotes proper vehicle maintenance and that "the more information available about a vehicle's maintenance, the easier it will be for a potential buyer to know and evaluate the actual condition of a vehicle."

It states that: "The adhering workshops will make the relevant maintenance annotations of the vehicles in their 'document management system' (hereinafter DMS), from which it will export transmitting daily to the Vehicle Registry the following data:

- chassis number
- license plate
- Maintenance or repair annotations that have been carried out on the vehicles, such as repairs on seat belts, replacement of windows, or regular vehicle maintenance (oil changes, filters, brake pads, etc.).

3.3 It states that "the electronic maintenance book is a passive safety element, based on public interest, the DGT may request adhering workshops to provide the previously indicated data (chassis number, license plate, and repairs or maintenance). The workshop may only provide such data when the user has expressly authorized it (usually by checking a box on the work order).

In summary, the workshop provides the data based on the express consent of the interested party, while the DGT requests them based on public interest.

3.4 To the questions raised, the DGT responded:

3.4.1 Date of production launch of the LTE, as well as the number and percentage of workshops registered on this platform.

"The start of communication IDEX with the workshops: early 2018. Current number of users: six."

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3.4.2

Description of the functionalities of the LTE:

At this point, the DGT indicates the following:

"Annotation of the repairs and maintenance carried out on the vehicle, along with the 'date of completion and the mileage at that date.'"

3.4.3

Identification of the data controllers managing the data processed in the LTE.

"The personal data processed in the ELECTRONIC MAINTENANCE BOOK (referred to as 'workshop book' by the AEPD) is included in the processing 'Vehicle Register.'

The data controller is the DGT.

All information regarding the processing is published in the RAT of the Ministry of the Interior:

<http://www.interior.gob.es/web/servicios-al-ciudadano/participacion-ciudadana/proteccion-de-datos-de-caracter-personal/tutela-de-los-derechos#registro>"

3.4.4

Identification and accreditation (contracts) of the data processors managing the data processed in the LTE, in accordance with the provisions of Article 28 of the GDPR.

The DGT states the following but does not provide documentation in this regard:

"The workshop only has access to technical information related to the modifications made. Access is limited to the license plates indicated by the clients, with a contract existing between the workshop and

the client.

There is a standard clause for data processors available to all Subdirections on the DGT intranet, in the data protection section. It is a model of standard clauses for suppliers with and without access to personal data. Thus, it is a requirement before proceeding with the registration of the workshop by the IT Management.”

The DGT has not provided the contracts of the data processors associated with the platform.

3.4.5

Copy of the record of all activities of processing personal data associated with the LTE. This record, referred to in Article 30 of the GDPR, must be provided in its initial version, along with any additions, modifications, or exclusions in its content.

The DGT indicates that:

“The Workshop does not access any personal data collected in the General Vehicle Register through the Maintenance Book.”

3.4.6

Conditions under which a workshop can join the LTE.

The DGT states:

“Workshops wishing to register in the electronic maintenance book must present the IAE specifying that they carry out the work activity related to vehicle repair.

The following websites contain documentation regarding the requirements and necessary data for registration:

<https://sede.dgt.gob.es/es/vehículos/libro-taller/> and <https://librotaller.com/>”

3.4.7

Details of the processes for registering and deregistering a workshop in the LTE.

“Computer registration by the General Directorate of Traffic,” indicating the same websites as in the previous section.

3.4.8

Description of the established procedure regarding the processing of personal data of users of the workshops affiliated with the LTE:

a.

Copy of the information on data protection provided through any channel to users:

The DGT indicates that:

“All information related to data protection can be consulted on the DGT electronic headquarters (<https://www.dgt.es/contenido/proteccion-de-datos/>). There is no additional information, as indicated in point 3.”

On this webpage (<https://www.dgt.es/contenido/proteccion-de-datos/>), the applicable regulations, the functions and contact details of the DPD of the DGT, and how to exercise rights regarding data protection are available.

b.

Details of the channels and procedures established to inform users of all information regarding personal data protection.

The DGT refers to the information that can be consulted on the website

<https://www.dgt.es/contenido/proteccion-de-datos/>.

c.

Information regarding the channels, mechanisms, and methodologies used to obtain users' acceptance of the privacy policy or any other document used to inform about personal data protection, as well as for obtaining the consents provided for in such documents, if applicable.

At this point, the DGT states that:

“The workshop may only transfer those data when the user has expressly authorized it (usually by checking a box in the work order).”

3.4.6

Details of the information associated with vehicles and clients registered in the Vehicle Register of the

DGT by the workshops affiliated with the LTE.

At this point, the DGT responds:

"License plate, repairs carried out, and date of completion."

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3.4.7

Retention period for information recorded in the LTE:

The DGT indicates that the retention periods for information in the LTE coincide with those of the data processing activity related to the Vehicle Register:

"they will be retained for the time necessary to fulfill the purpose for which they were collected and to determine any possible liabilities that may arise from that purpose and from the processing of the data. The provisions of the regulations on archives and documentation will apply."

3.4.11 Access to data recorded in the LTE:

- By citizens:

The DGT states that if there is information recorded and included in the "Vehicle Register," which does not always happen, section LTE, it would be provided through the obtaining of a "detailed vehicle report," via the DGT electronic headquarters with a digital certificate or in person at the Provincial Traffic Headquarters. If such information is not included, logically, it would not be provided as it does not appear.

3.4.12 Additionally, the following consultations regarding real vehicles must be made and the reports generated must be provided:

- Consultation of a real vehicle whose data is recorded in the LTE.

The DGT attaches a document (Annex 1 "example, "vehicle report with maintenance annotations") dated 3/03/2022, which includes at the bottom of the page the informational text that has already been mentioned above, regarding: "This document constitutes a report from the General Vehicle Register of the Directorate General of Traffic (Article 2 of Royal Decree 2822/1998, of December 23...)"

Information is observed in various sections, among others:

- "Owner's data,"

- "Vehicle identification," with license plate, registration date, make, model, chassis number, vehicle address, "history of owners" with start-end date and type: "company" in this case,

- "History of technical inspections" with results and kilometers at which it was passed and the station.

- "History of odometer readings," date, reading, in number of kilometers and responsible for the reading, which can be voluntary declaration or station, stating below: "The DGT is not responsible for the accuracy of the mileage readings reflected in this report as they have been provided by entities outside the DGT."

- "Technical information."

- "WORKSHOP BOOK," appears in columns, from left to right, the "legalization date" which could be the date on which the action is performed. For this vehicle, three dates, the first on 11/11/2020.

- kilometers, to the right of the legalization date, importance, here it appears, low in all three, description, indicating what it consists of, it can be "perform review," in others "change TR brake pads," "change battery" or "change gas oil filter," and description, associated with the affected part, here it appears in all "replacement,"

- In type, here it appears in all "maintenance review," which frames: "part": which here lists different types of filters (oil, air, cabin) or battery,

- In concept, here it appears: for each date one, "braking," "engine," "oil change."

- Consultation of a real vehicle whose data is not recorded in the Electronic Workshop Book.

The DGT attaches a document (Annex 2) which includes a report dated 25/01/2022 corresponding to a vehicle where no entry corresponding to the Electronic Workshop Book appears.

3.4.13 By a workshop:

a)

Description of the process and necessary data to consult the maintenance and repairs of all vehicles included in the LTE by a workshop.

The DGT responds that computer integration by IDEX-WORKSHOP is necessary through the web service after registration with the DGT. The requirements are specified on the website <https://sede.dgt.gob.es/es/vehículos/libro-taller/>.

The DGT adds that:

“It is necessary to have the updated public key of our electronic certificates from our domains installed in the trusted repository of the server used in the integration” and according to the attached document (Manual included in the welcome pack), that “the Web Service will be published encrypted using SSL and applies the WS-Security (Web Services Security) communication protocol which provides a secure means with the DGT for the use of the service.”

The mention of the website leads to the electronic headquarters, section on LTE information.

In none of the sections of the information is anything indicated about the vehicle owner regarding consent, or any other type of action, but terms are contained such as in the section What information is registered through IDEX Workshop Book?: “the information that workshops must send...”, or in: WHO IS IT AIMED AT?, it indicates that “to vehicle repair workshops and associations of workshops.” In WHAT YOU SHOULD KNOW, it states that:

“The DGT has created the electronic workshop book so that vehicle repair workshops can communicate the repairs and interventions carried out on vehicles. The objective of the project is for citizens to be informed of the repairs and interventions carried out on vehicles to provide transparency to the vehicle buying and selling market and to promote the proper maintenance of vehicles, being able to consult such repairs and interventions in the vehicle report service.”

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En: WHAT MEANS DO I HAVE TO ACCESS IDEX WORKSHOP BOOK?, it is indicated that

“The performance of inquiries and annotation of repairs through IDEX will be via the web service exposed by the DGT that allows the integration of third parties through the internet.

It is necessary to have the updated public key of our electronic certificates for our TRAFFIC or SEDE domains installed in the trusted repository of the server used in the integration.

What is the registration process in IDEX workshop book?

Companies interested in this service may contact the DGT through the email address soportecau@dgt.es to have their email attended to, with IDEX as the subject in the body of the message, under the service/application section, including a complete guide for registration in the system.

In “What advantages does the DGT workshop book have for workshops?”:

“Collaborating workshops in the project will have access to information about the workshop book itself, as well as about the ITV inspections; with this information, they will be able to know in more detail the vehicle on which they are going to carry out the repair, which will facilitate the work they have to perform on the vehicle, saving time and resources.”

3.4.14 Detailed description of the information and/or reports to which the workshop has access regarding the consulted vehicle.

In this regard, the DGT indicates that the following data is accessed based on the license plate provided by the client:

- Propulsion.
- Date of first registration.
- Brand.
- Model.
- Mileage.

- Workshop Book annotations.
- List of incidents in the Workshop Book.

3.4.15 Access control measures for workshop employees to the LTE.

The DGT responds that employees can only communicate data to the Vehicle Registry and consult the communicated data.

3.4.16 Copy of the confidentiality clauses of the workshops affiliated with the LTE.

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The DGT states that there is a standard clause for data processors available to all Subdirections on the DGT intranet, data protection section, but does not attach any documentation in this regard.

3.4.17 The DGT provides the document, “Manual of Artifact.WS Intranet Workshop,” “data incorporation workshop-DGT, IDEX (incorporation of data from external entities) version 27/05/2014, which aims to describe the interface for incorporating information related to repairs and other significant actions of vehicles carried out in workshops to the DGT. This submission is carried out through a web service that has two methods:

- Method send File: Sends the workshop information to the DGT.
- Method collect Result: Collects the result of processing the information submission.

The document technically describes the integration process of that web service. The document describes the data used by this web service and that operational incidents will be reported to the DGT.

1) On the day 05/07/2022, access was made to the webpage https://transparencia.gob.es/transparencia/transparencia_Home/index/PublicidadActiva/OrganizacionYEmpleo/Registro-Tratamiento/RAT-MIN T.html where the RECORD OF TREATMENT ACTIVITIES of the Ministry of the Interior is listed, dated 26/06/2022, among them, the treatment related to the “Vehicle Registry” is noted as significant:

- Description of the treatment: registry of vehicle owners, long-term lessees, and habitual drivers.
- Category of interested parties: natural and legal persons, owners, lessees, habitual drivers, vehicle holders.
- Description of the category of personal data: name and surname, address, guardianship data, or emancipated, license plate, chassis, vehicle adaptation if applicable.
- Data transfer: Among others, it includes: citizens with legitimate interest, workshops associated with the LTE system are not listed.
- Basis of legitimacy: GDPR articles 6.1. c) referring to various regulations, and article 6.1.e) is added.

2) On the day 11/07/2022, a request for information was sent TO VARIOUS WORKSHOPS (346 to 380) listed on the DGT website, <https://www.dgt.es/conoce-la-dgt/con-quien-trabajamos/talleres/>, where a list of workshops registered in the LTE system is shown, as indicated on the website itself. For this, a sampling of ten workshops was carried out based on their location and size.

One of the workshops that received the request did not respond, another stated that “it is not yet affiliated” and they do not have data. One workshop states that, despite being registered in the system, its use is “complex for workshop professionals,” and at no time has it...

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the use of the same is not offered to clients. Despite this, it provides a copy of the deposit receipt with the vehicle's budget where the data of the same and its owner are collected, without any section regarding the transfer of data to the DGT.

In this request, the following information was requested:

5.1)

Description of the workshop's access mode to the LTE platform:

a. Description of the process for consulting the maintenance and/or repairs of the vehicles registered on the platform, including the specification of the necessary data to make a query about a specific vehicle. Two cases will be distinguished:

- A vehicle that has visited its workshop.
- A vehicle that has not visited its workshop.

b. Description of the information and/or reports that the workshop has access to when consulting a specific vehicle.

***COMPANY.1 states that for both those who have visited the workshop and those who have not, it is done "on the platform," "by entering the license plate or chassis number." It states that when this workshop queries a specific vehicle, it has access to the following information/reports:

"The last maintenance or repair that has been carried out on a specific vehicle and the date of the last ITV." It attaches a screenshot showing the vehicle's information (chassis, license plate, NIVE, and mileage), the type, importance, and date of the incident, the code and description of the incident, and the parts associated with that incident.

***COMPANY.2 only indicates that they access the platform using a username and password. Once inside the system, it states that the data they can add about a specific vehicle are the chassis, license plate, vehicle kilometers, and the work carried out on it. It attaches a screenshot.

***COMPANY.3 states that "Access to the DGT Workshop Book is by username and password, after registration. It states that the entry in the LTE is made to comply with the regulations related to the Low Emission Zone (ZBE) of Barcelona and the Regulation of the Metropolitan Register of foreign vehicles and other vehicles authorized in low emission zones, where the workshop is located, and, consequently, must obtain prior consent through the DGT Workshop Book to proceed with the dynamic test of the vehicle by the ZBE and avoid sanctions from the authorities for the circulation of that vehicle without an environmental label."

"Only accesses the platform (LTE) to request authorization and be able to circulate in those vehicles that do not carry a label or environmental badge when they enter our workshop and we must circulate with them outside our facilities (pass ITV, etc.) The dynamic test of the vehicle is necessary for the diagnosis and verification of the same to be able to execute the client's order to the workshop."

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Provides an informative link to the address for each of the website, the ZBE, and the aforementioned Regulation.

It declares that "it does not consult either maintenance or repairs of the vehicles registered on the platform nor of vehicles that have visited our workshop nor of those that have not visited it previously. Below, we detail with examples of screens from the workshop book so that you can see the data that appears there when consulting a repair or maintenance [...]"

It then shows a series of screenshots where it can be seen that vehicle data can be consulted on the platform by entering the license plate or chassis number. It also shows a screenshot where data can be sent to the platform.

- ***COMPANY.4 states that it has never accessed the platform either to consult or to enter data. It provides a copy of a screen print in which no record appears.

It provides a copy of its clause of information on the protection of personal data that includes a section on general conditions of the repair. There is no mention of any information regarding the transfer of data to the DGT of the LTE. From the copy of the document: "repair order," there is also no aspect regarding the LTE.

It responds to the request, point by point, providing information on the operation of the platform, "according to the instructions of CETRAA."

It reiterates that in the "search repairs" menu, the license plate and chassis are requested, resulting in the annotations made previously in the workshop book and that are registered in the DGT database

and the ITV history. It adds that the consultation of existing annotations in the DGT RV made by this method can be carried out by any workshop, since the query is always of the totality of the information contained in the DGT RV.

It also details that in the introduction of data of the vehicle owner there are in "type of incidents," those of repair, review/maintenance, partial accident, total accident.

It reiterates the argument that the data entered as chassis and license plate do not contain personal data, since "they are data known by the DGT, being this the manager of those data. "They are simply used as identifiers to communicate the intervention carried out on the vehicle." Considering that there are no personal data, it concludes that there is no transfer of data.

- ***COMPANY.5 states: "The data provided to the DGT do not have the character of personal data, since both the license plate and chassis are data known by the DGT; in fact, the DGT is the designated manager of those data. They are simply used as identifiers to communicate the intervention carried out on the vehicle, which in no case are personal data." It attaches procedures, Pages 1-4.

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Responds to the request, point by point, providing information about the operation of the platform.

Specifically, regarding the description of the consultation process for the maintenance and/or repairs of vehicles registered on the platform, it states:

"This consultation procedure does not differentiate between the entries existing in the Vehicle Register of the DGT made in my workshop and those made by any other workshop user of the Workshop Book. The consultation is always of the totality of the information contained in the Vehicle Register of the DGT."

- ***COMPANY.6 states that it registered on the platform but has not used it at all and has not registered any data. It attaches a work order template where there is no reference to the LTE.

5.1)

Description of the procedure related to the processing of customer data and their vehicles by the workshop:

- a. Description of the data that is registered on the platform.
- b. Copy of the information regarding the processing of customer data and their vehicle (privacy policies, form templates, work orders, etc.) that is provided to them each time they visit the workshop.
- c. Description of the mechanisms used by the workshop to obtain the customers' consent for the transfer of their vehicle data to the General Directorate of Traffic through the platform.
- d. Description of the actions taken by the workshop when the customer does not give their consent for the transfer of their vehicle data to the General Directorate of Traffic through the platform.

***COMPANY.1 notes:

- They register: license plate, chassis number, vehicle mileage, and description of the work to be performed.

- Regarding the information related to the processing of customer data and their vehicle (privacy policies, form templates, work orders, etc.) that is provided to them each time they visit their workshop, it states:

"Until 11/07/2022, the clause provided as DOCUMENT No. 1 was used, which has been modified to obtain written evidence of providing all the information, as well as obtaining consent for the transfer of data. It provides DOCUMENT No. 2."

At the end of document No. 2, the data protection clause appears with the following text:

"In accordance with the current and applicable regulations on the protection of personal data, we inform you that your data will be incorporated into the treatment system owned by ***COMPANY.1

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- Purpose: Administrative management, billing, accounting, and the contractual and legal obligations arising from the provision of the service.
- Retention period: For as long as necessary to fulfill the mentioned purpose, to comply with the legal obligations that arise, and to determine any possible liabilities that may arise from that purpose and the processing of personal data.
- Legitimate basis: The provision of the contracted service (execution of the contract or pre-contractual measures).
- Automated decisions and/or profiling: Not foreseen.
- Transfers: your data may be transferred to public bodies and/or public administrations with competence in the matter, banking entities, and judges and courts when required. They may also be transferred to Data Processors who provide us with some service (e.g., backups). If you expressly consent, your vehicle data will be transferred to the General Directorate of Traffic through the "Electronic Workshop Book" platform. There are two boxes to check, or not, the consent for the transfer of vehicle data to the DGT with the DGT website address ([http](http://www.dgt.es)), and the wording that, by signing this document, confirms that you have read the information regarding the processing.

Regarding the description of the actions taken by the workshop when the customer does not give their consent for the transfer of their vehicle data to the DGT through the platform, ***COMPANY.1 states: "This workshop has not encountered a situation where a customer does not want to give their consent after using the updated document (DOCUMENT No. 2). Previously, there have also been no incidents regarding the use of this platform when it was verbally informed to customers. However, in the event that consent is not provided, this workshop would not register the customer's data on that platform, while still carrying out the requested work."

- ***COMPANY.2 attaches a copy of a work order template that contains a section on personal data that informs about the processing, stating that: "The data will not be transferred to third parties except in cases where there is a legal obligation," with no reference to the LTE. The same is noted in the template of an invoice that it provides.

- ***COMPANY.3 states that "it does not transfer its customers' vehicle data to the DGT as it only accesses the platform (Electronic Workshop Book) to request authorization and be able to circulate in those vehicles that do not have a label or distinguishing mark." It attaches as Annex 1 a document with information regarding the processing of customer data and their vehicle when they visit the workshop. This document has a section titled "PRIVACY NOTICE" and another section titled "CONSENTS" where neither the Electronic Workshop Book nor the DGT is mentioned in either of them.

- ***COMPANY.4 states that "it neither uses nor has ever used the platform."

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-***COMPANY.5 states that for the "information regarding the processing of customer data, and consent" it attaches a copy of the security document where this information is collected.

Pages 5-8

For "the right to object and deletion when the customer does not give their consent to the transfer of data to DGT, we attach a copy of the model/models, pages 9-11."

It provides information regarding the processing of customer data, as of 25/01/2022, in which the legal basis of consent for managing the relationship with customers is indicated, without DGT being listed as a recipient. Neither in the form that customers must fill out, which includes a section on "data protection," is there any reference to the LTE nor is consent from the interested party requested for the transfer of their vehicle data to the LTE platform.

1) On 02/09/2022, a second request for information was sent to the DGT, which responded on

20/09/2022. In this request, the following information was sought:

6.1 It questions the discrepancy between the number of workshops listed on the website <https://www.dgt.es/conoce-la-dgt/con-quien-trabajamos/talleres> and the response given on 02/06/2022, in which it indicated that the number of users or workshops was SIX, and requests that they be identified.

In the response, it states that the "list of companies registered at the headquarters is not updated" and others cease to communicate data.

It states that the information recorded for each vehicle has traceability to identify which company made the entry, in case it needs to be verified.

On the other hand, "belonging to the same CIF, there may be different branches, which are also identified. The 'Annotator' is the company or branch that signs the communication."

It provides a list of SIX entities, with a CIF among which is CETRAA.

6.2 A list of all vehicles registered in the LTE system showing the vehicle registration number, as well as the NIF and name of the workshop that sent the information regarding repairs and maintenance carried out on each of those vehicles.

6.3 Select two vehicles from each of the workshops listed in the previous point and send all the information associated with each of them recorded in the LTE system.

The DGT responds to both questions, referring to:

"2. Examples of entries in the Maintenance Book"

It indicates that the data collected through the book are those indicated in the section "incident detail," already recorded in the RV under the section "vehicle." It provides as examples queries on a screen of an application referring to 12 vehicles. The top reflects the title "search for vehicles by registration number" and the results can be seen in THREE sections:

1 "vehicle," with data of this,

2 "incident detail" regarding a specific entry in the LTE. In this last field, it can be seen:

- "annotator" showing a numbering, which the DGT calls "DOI," and it is noted that this annotator reference may be different from the CIF of the company, and, in fact, does not correspond with the CIFs of the SIX entities that, according to the DGT, are currently active in the system, one of which is CETRAA, which is not a workshop, but an Association.

- "date of entry," the oldest is from 11/02/2020. In the rest of the registration numbers, the CIF of the company noted by the DGT coincides with the visible annotator DOI in the registration field.

3 "workshop incidents," where references to episodes of dates such as 29/04/2015 are noted, considering that according to the information from the DGT, the LTE project began in 2018, "type": "partial accident," "concept reinforcement bar vehicle structure," and the option to "view detail" element: side skirt, side panel, rear skirt. In both, the annotator is noted as CIF A28586550, which corresponds to AUDATEX, one of the SIX entities.

In another of the vehicles, in "workshop incidents," the dates, kilometers, importance, and type of review/repair are noted, with the description, and the option to view detail. Thus, a repair is associated with the description and five maintenance reviews also with their descriptions (battery change, brake pads...). The CIF of the company associated as annotator is G58203431, which corresponds to the entity CETRAA.

It is observed that some of the annotators in the LTE of those twelve registration numbers provided by the DGT, which should be workshops, consulted in the application "monitoriza" include entities that have nothing to do with such vehicle repair services like AUDATEX ESPAÑA SA (activity of services related to information technology and computing and which has two registration numbers from the list), or GT MOTIVE (printing and graphic arts activities).

It is also noted that the dates of entries, in addition to those mentioned, the most recent would be from 4/05/2022.

By accessing the website <https://monitoriza.axesor.es>, it is observed that:

- the entity GANVAM that appears in the list of the SIX, with NIF G28549145, is the National Association of Motor Vehicle Vendors. Regarding this association, the DGT does not provide data for any vehicle registered on the platform.

- Regarding CETRAA, the registered data of two of the vehicles are noted.

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- The entity CEINOR SOFT S.L. with NIF B39574231 is engaged in IT consulting activities. Regarding this company, the DGT does not provide data on any vehicle registered on the platform, although it appears on the list of the SIX entities.

- The entity ***EMPRESA.8 with NIF (...) is engaged in the rental of cars and light motor vehicles. Regarding this company, the DGT provides data on two vehicles registered on the platform (license plates (...) and (...)).

- 6 of the license plates provided have a notation that corresponds not with the format of the CIF but with that of the NIF.

1) Based on the previous response sent to this Agency by the DGT, it was decided to send two requests for information, one for those entities that apparently had no prior relation to the automotive business, and another sent to the entities that did.

To the former, the following was requested:

7.1 Date of registration on the platform and documentation to verify it.

GANVAM (NATIONAL ASSOCIATION OF MOTOR VEHICLE SELLERS) responded that it was in 2019, although it does not have documentation to verify it. The connection interface with the DGT tool is currently disabled.

CEINOR SOFT S.L. responded that: "In December 2018, one of our clients, ***CLIENTE.1, requested us to develop a tool that would allow connecting the ERP used in their service centers with the DGT, in order to facilitate to this agency the maintenance history of vehicles carried out in their service centers."

For this, CEINOR was requested to register on the DGT portal as a collaborator of the LTE "and we were provided with a developer pack prepared by the DGT with access to a PREPRODUCTION environment also prepared by the DGT" so that the technical teams could develop and test various solutions in a non-real environment with invented data to avoid distorting reality in the PRODUCTION environment. Between January and March 2019, the CEINOR team worked on the technical solution of the tool always using the PREPRODUCTION environment and sending NON-REAL data.

***CLIENTE.1 was responsible for organizing the more administrative and legal aspects and made an inquiry to the AEPD to ensure the correct use of the data. The technical solution was completed on 6/03/2019, with the last communication to the PREPRODUCTION environment and confirmation of acceptance by the DGT in that environment. This project was put on hold pending a response from the AEPD and the legal team of ***CLIENTE.1, which would give the green light to prepare the PRODUCTION phase in the workshops, which never occurred. This is a project that has never been put into PRODUCTION and all data sent and received were with unreal data in PREPRODUCTION environments.

Attached is an email dated 13/12/2018 from the DGT to CEINOR indicating that it has verified that CEINOR already has permissions for IDEX TALLER in the LDAP. "You can test without problems."

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AUDATEX ESPAÑA S.A. in its response indicates that it is neither a mechanical workshop nor an association of mechanical workshops, a necessary requirement for registration on the Platform. It is not registered on the "LTE Electronic Workshop" platform. Prior to March 2017, AUDATEX was involved in a collaboration with the DGT regarding other projects different from this "Electronic Workshop Book" Platform.

7.2. Description of the mode of access to the platform.

GANVAM states that it should be done through a web application, according to the specifications provided by the IT professionals from the DGT, conducting tests and interactions with the DGT's tool. It mentions a company that "designed" for them the interface—now disabled—for connection with said DGT tool, "which never became operational." It indicates that the data collected for submission to the DGT belonged to the manufacturing brands.

7.3 Identification of the data registered on the platform.

GANVAM stated that "The data collected from the brands via an Excel file consisted of four columns: Chassis or registration number, date, and kilometers traveled. However, they were never registered on the DGT platform. The future intention was to also collect fields related to vehicle maintenance (Type of incident, incident code, description, affected part, impact, importance, and date), "but we never managed to implement it."

CEINOR SOFT S.L. states that it attaches the only five submissions that exist, all of them in a PREPRODUCTION environment, being erroneous and discarded as communication could not be established. Of the three remaining submissions, two were made from our facilities (with fictitious data) and the third and last was carried out from our client's workshop ***CLIENT.1, presumably with their own data. All these communications were made on 06/03/2019 between 14:49 and 16:51. "The certificate used in PREPRODUCTION was that of CEINOR SOFT as the developer for conducting tests in the unreal environment, but once the project entered its PRODUCTION phase, it would be the client's own certificate, ***CLIENT.1, that would be used for all communications."

AUDATEX ESPAÑA S.A. responds to each of the points.

7.4 Description of the process followed to collect the data registered on the platform, indicating and accrediting both the information provided to the vehicle owners and that collected from them.

GANVAM stated that: "The data was collected through Excel files that the brand sent to our email, conveying the following information: chassis or registration number, date of reading, and number of kilometers. No new files have been received since February 2020, and the existing ones have been destroyed. The vehicles whose data were collected for submission to the DGT were vehicles owned by the manufacturing brands that during their logistical processes (repurchase or buy-back from rental companies, imports, or trade-ins) were owned by those brands and after refurbishment would then be normally marketed through their dealership networks. No

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We have gathered data on vehicles whose ownership does not belong to the brands themselves. However, we have not incorporated any data of any vehicle into the platform.

7.5 Description of the information and/or reports that your organization has access to when consulting a specific vehicle on the platform.

GANVAM responded that "We do not have that information as the web application never functioned, and we could not access those reports or any type of information. The objective was for the mileage field to appear updated in the INTEVE, the telematic report of the DGT, and to narrow the possible range of fraud for those who manipulate the vehicle's odometer during the intervals between one ITV inspection and another (the moment when the odometer reading is reported to the DGT)."

"We conducted data reporting tests that were unsuccessful due to technical problems. When the DGT changed the information system from ATEX to IDEX, we attempted to conduct a new pilot for data reporting, but it was no longer possible, and we abandoned the project in February 2020."

7.6 List of all vehicles whose repairs and maintenance have been registered on the platform, identifying them by their license plate and indicating the date of registration on the platform.

GANVAM states that it did not register any vehicle, "due to technical difficulties of the platform."

7.7 In the event that your organization has appointed a data protection officer, indicate the advice they have provided regarding the processing of data registered on the platform.

GANVAM stated that it has not appointed a DPO, as it does not collect personal data from the vehicle owner. Since the platform did not function, they have not been able to register any data, and data older

than one year has been destroyed.

8. On 4/10/2022, three entities listed in the document sent by the DGT with the license plates as “noters” were requested to provide the following information:

8.1. Date of registration on the LTE platform and documentation to support it.

-***COMPANY.7 responded on 15/11/2022 that “it is not, nor has it ever been prior to today, registered on the Electronic Workshop Book platform. Consequently, since all the requested information regarding registration on the platform cannot be provided due to its non-existence.”

-***COMPANY.8, on 13/10/2022, indicated that it is a company specialized in long-term vehicle rental services for large companies, SMEs, professionals, and individuals. It explains what the vehicle lease contract consists of, which includes preventive maintenance at its expense. It adds that these operations are not carried out by its own workshops, but by a network of workshops, either Official Service Workshops of a specific car brand or independent workshops (multi-brand or not incorporated into an official network), and with which it has...

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established a series of agreements, with the main purpose of providing coverage to its clients throughout the national territory.

It adds that it is “not” adhered to the LTE information system created by the Agreement established by the Spanish Confederation of Automobile Repair Workshops and Related Services (CETRAA) and the DGT, nor does it perform any actions in said LTE, whether it be loading information and data of the maintenance operations that have been carried out on the vehicle or communicating them to the General Directorate of Traffic, nor has it received information about this LTE from any of the workshops.

-***COMPANY.9 responded to the information request on 10/10/2022, indicating that it began incorporating data into the system in July 2018 and that the data “maintenance or repair, or accident” is recorded with the prior authorization of the client.

8.2. Description of the workshop's access mode to the platform:

a.

Description of the process for consulting the maintenance and/or repairs of the vehicles registered on the platform, including the specification of the necessary data to make a query about a specific vehicle. Two cases will be distinguished:

i. A vehicle that has visited its workshop.

ii. A vehicle that has not visited its workshop.

b.

Description of the information and/or reports that the workshop has access to when consulting a specific vehicle.

-***COMPANY.9 responds by describing the access process to the platform that it performs on the CETRAA website at <http://librotaller.cetraa.com/login>, providing the registration data as a workshop user of the platform: User or email and Password. It describes the process of consulting maintenance and/or repairs of the vehicles registered on the platform, providing the description of the information and/or reports that the workshop has access to when consulting a specific vehicle (already described previously), and describing the data that is registered on the platform (already described previously). In response to the question “Description of the process for consulting the maintenance and/or repairs of the vehicles registered on the platform,” it provides a screenshot that begins in the “search repairs” section of the homepage, requiring the input of “license plate and chassis number,” resulting in information that, as stated, “does not differentiate the existing entries in the DGT Vehicle Register made in my workshop from those made by any other workshop user of the Workshop Book. The query is always of the totality of the information contained in the DGT Vehicle Register.”

In response to the question: “Description of the information and/or reports that the workshop has access to when consulting a specific vehicle,” it provides “search results,” containing:

- license plate of the vehicle and data from the first ITV, from the year 2015, (date of implementation of the LTE according to the DGT: 2018), with the number of kilometers and the result. The information is C/ Jorge Juan, 6

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reiterates annually also containing whether it was favorable or unfavorable, the last ITV being that of 2021.

- mileage record of 30/09/2021, which according to ***COMPANY.9 belongs to the block of "records of repairs or maintenance carried out in LTE" and that this option is used exclusively for the request for an exceptional circulation authorization by the ZBE for dynamic testing of the vehicle.

8.3. Description of the procedure regarding the processing of customer data and their vehicles by the workshop:

a. Description of the data that is recorded on the platform.

b. Copy of the information regarding the processing of customer data and their vehicle (privacy policies, form templates, work orders, etc.) that is provided to them each time they visit the workshop.

c. Description of the mechanisms used by the workshop to obtain customer consent for the transfer of their vehicle data to the DGT through the platform.

d. Description of the actions taken by the workshop when the customer does not give their consent for the transfer of their vehicle data to the General Directorate of Traffic through the platform.

- ***COMPANY.8 stated regarding the information provided to its customers in relation to maintenance services, that customers are informed during the contracting process and formalization of the Renting contract of the specific conditions for the provision of services, including preventive maintenance of the vehicle, in accordance with the indications and prescriptions made and defined by the vehicle manufacturer (regular inspections, changes of elements such as oil and fluids, among others); as well as the options for selecting the workshops associated with ***COMPANY.8 that carry out corrective maintenance operations (repairs of parts, damage to the vehicle resulting from accidents and accident reports), making available to its Customers a list of Associated Workshops, as well as contact details: geographical location, telephone numbers, and other specialization data of the Workshop.

- ***COMPANY.9 indicates:

Regarding the information on the processing of personal data to the data subjects, compliance is achieved by including the clause for customers in the estimate and in the repair order. In this clause, the data controller is identified and the purpose of the processing is described: Performance of the requested service and billing of the same, with the execution of the contract being the legitimization for the processing of the data. Furthermore, the customer is informed that they can exercise their rights to access, rectify, object, limit, port, and delete the data before the data controller; in addition to contacting the competent control authority (AEPD).

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Regarding the description of the mechanisms used by the workshop to obtain customer consent for the transfer of their vehicle data to the DGT, it states:

"It is incorporated in the repair order and in the estimate the request to the customer for

their authorization for the data upload to the workshop book, through a yes/no option.” However, this workshop has not attached documentation that substantiates the previously mentioned.

It indicates that in the event that the customer does not give their authorization for the data upload to the DGT, the workshop does not include the data of the vehicle repair in the workshop book.

8.4. List of all vehicles whose repairs and maintenance have been recorded on the platform, identifying them by their license plate and indicating the date of entry in the platform.

- ***COMPANY.8 states that the associated Workshop communicates to them the maintenance operations that have been carried out on the vehicle, since the ownership of the vehicle is ***COMPANY.8 and these operations and actions are paid for by ***COMPANY.8 to the Workshop... “Outside of these cases, ***COMPANY.8 does not receive any other information from the Workshop, nor do they have access to the information generated within the Electronic Workshop Book by the General Directorate of Traffic, except for the information they wish to obtain, like any citizen, through the procedures established by the General Directorate of Traffic, which are accessible at <https://sede.dgt.gob.es/es/vehículos/informe-de-vehículo/>.

- ***COMPANY.9 does not provide a response to this point 4.

THIRD:

On 6/03/2023, the director of the AEPD agreed:

“FIRST: TO INITIATE SANCTIONING PROCEDURE against the GENERAL DIRECTORATE OF TRAFFIC, with NIF Q2816003D, for the alleged infringement of the GDPR in the following articles:

“-6.1, in accordance with article 83.5.a) of the GDPR, and for the purposes of prescription of the infringement, classified as very serious in article 72.1.b) of the LOPDGDD.

- 25.1, in accordance with article 83.4 a) of the GDPR, and for the purposes of prescription of the infringement, classified as serious in article 73.f) of the LOPDGDD.

- 32, in accordance with article 83.4.a) of the GDPR, and for the purposes of prescription of the infringement, classified as serious in article 73.f) of the LOPDGDD.

- 30, in accordance with article 83.4.a) of the GDPR, and for the purposes of prescription of the infringement, classified as minor in article 74.l) of the LOPDGDD.”

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“for the purposes provided in article 64.2 b) of law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be a warning for each of the infractions.”

FOURTH:

On 9/03/2023, a request for an extension of the deadline was received from the respondent, which was authorized.

On 15/03/2023, a written statement from the respondent was received, stating:

1)

“Regarding the question posed by the AEPD about whether there is any state or European Union regulation that governs the information that the DGT has on the ELECTRONIC MAINTENANCE BOOK (also referred to as the Workshop Book), the following response is presented:

A- Information collected by the DGT:

"In the DGT's RV, the section on 'ELECTRONIC MAINTENANCE BOOK' is not included, as only the repairs and maintenance that the workshop voluntarily communicates are recorded, in order to comply with the provisions of article 2 of the RGV, since, throughout the useful life of the vehicle, its technical characteristics are modified due to reforms, accidents, or repairs that directly affect road safety."

B- As legal grounds for public access to the data contained in the LTE, it cites article 61 of Regulation EU 2018/858, REGULATION (EU) 2018/858 of the European Parliament and of the Council of 30/05/2018, on the approval and market surveillance of motor vehicles and their trailers and of the systems, components, and independent technical units intended for those vehicles, which amends Regulations (EC) No. 715/2007 and (EC) No. 595/2009 and repeals Directive 2007/46/EC, OJ of 14/06/2018, titled:

"Obligation of manufacturers to provide information regarding the DAB system (digital radio system) of vehicles and information on the repair and maintenance of the vehicle." The provision and ANNEX X outline the measures directed at manufacturers to ensure access to information about the DAB and information on REPAIR and maintenance of the vehicle in a standardized format and easy access, or access granted to authorized dealers or repair workshops, and the homologation authorities will not grant it until these elements are certified.

It adds that, under the General Law on Consumers, goods and services must provide information and instructions regarding their use and consumption.

It mentions another regulation, in draft form, an initiative of the European Commission from 2022, the Data Regulation (DATA ACT) and Regulation EU 2022/868, of the European Parliament and of the Council of 30/05/2022, regarding data governance, which does not specifically address the aspect of vehicle repairs by their owners, individuals, or private parties.

1)

It states that as of 9/03/2023, there are 847 active workshops in the voluntary repair annotation system.

Regarding the non-coincidence of the DOI of the annotator with the CIF of the company, the explanation is as follows:

"In the annotation phase of the workshop, each line shows its CIF. However, there is a process of sending the data package hourly, where each platform or representative chosen by the workshop signs it. That is, the workshop registers with its CIF and CETRAA, which is the workshop platform, sends the records.

When making an annotation, the system creates a file with the different DOI 'annotator' which are the workshops. When sending, the file is signed with the information from CETRAA. Therefore, it is normal for the identifiers not to match."

2) The data that the workshops provide to the General Directorate of Traffic regarding these repairs do not fall within the category of personal data, as they are technical data related to the date of intervention, vehicle kilometers, type of operation performed, and affected parts, and it is considered that the registration/chassis data of the vehicle are personal data that are already included in the General Directorate of Traffic's vehicle database, which is legally authorized for its processing, as stated in the Record of Processing Activities.

3) From article 2 of the RGV, the authorization for the processing of LTE data is deduced when it "refers to the mandatory elements of the circulation permit, as well as 'any vicissitudes' that they may subsequently suffer, or their ownership, and to the knowledge of its technical characteristics and its suitability for circulation."

4) Article 30 of the GDPR and article 31 of the LOPDGDD are complied with, as the DGT maintains its record of processing activities.

5) It accompanies revised data protection clauses to be used in contracts with external suppliers considered data processors. "We emphasize that the workshops adhering to the LTE project are not considered data processors of our vehicle processing, as the personal data they manage is provided by the vehicle owner."

FIFTH:

On 29/09/2023, it was agreed to open a ten-day period for the practice of evidence, as provided in articles 77 and 78 of the LPACAP.

It was agreed:

1. To consider reproduced for evidentiary purposes:

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A)

The document from the director dated 9/03/2022 which agrees to initiate investigation proceedings, as well as the report from the Legal Office dated 29/10/2021, number 53/2021 at the request of

***CLIENT.1, submission date 30/06/2021, dispatch date 2/11/2021.

B)

The preliminary investigation proceedings,

C)

The allegations regarding the initiation of the referenced sanctioning procedure, presented by the GENERAL DIRECTORATE OF TRAFFIC, and the accompanying documentation.

1. They are incorporated into the procedure as evidence:

A)

The content that the DGT indicated in its response letter, regarding the information available to anyone on its website, when questioned about the information provided to users who own vehicles that went to repair/maintain their vehicles at workshops covered by the LTE system. Specifically, it stated that it can be found at <https://www.dgt.es/contenido/proteccion-de-datos> which is printed and includes the title “info recogida datos.” Its content begins with the literal “privacy policy, as of 26/05/2023” and contains three sections:

- Basic information on data protection. It contains general information not related to a specific case of processing, the data controller, purpose, legitimacy, retention periods, and data transfer. All of them include links to the RAT.

- DPD of the DGT, containing contact details and headquarters, and,

- How to exercise your rights.

B)

The RAT obtained from the DGT website, latest updated version, which appears at the bottom of the aforementioned page, to check if there has been any variation with the one obtained in previous proceedings, and to find out if there was a reason. It is a pdf file of the RAT from the Ministry of Interior, consisting of 488 pages, “last updated date 27/09/2023.” On page 438, it lists the “vehicle registration,” with:

- Responsible: the DGT,

- Purposes: “Management of personal data associated with the license plates of registered vehicles”

- Legal basis-legitimization: It contains Article 6.1.c), and various laws such as RD 2822/1998 of 23/12, which approves the General Vehicle Regulation (RGV) or RDL 6/2015 of 30/10 which approves the consolidated text of the Law on Traffic, circulation of Motor Vehicles and Road Safety, and 6.1.e) of the GDPR.

- Categories of data subjects: Natural and legal persons who are owners/lessees/regular drivers/holders of vehicles.

- Categories of personal data: name and surname, address... license plate, chassis...

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- Categories of recipients: Among others, it includes: “citizens with legitimate interest,” “ITV stations.”

C)

In order to incorporate the relationship between the vehicle registration and its owner, access is made

to the website and the information obtained from the search term “DGT vehicle registration application” is incorporated, which leads to the result showing the dgt.gob.es page as the first result, where clicking leads to the url <https://sede.dgt.gob.es/es/vehiculos/matriculaciones-de-vehiculos/matriculacion-ordinaria/index.shtml>, and the first page is printed which carries the announcement: “What do you need to know?”, indicating that “once the registration process is completed, we will provide you with the license plate number and the vehicle registration certificate.” There is also a section titled: “Who can do it?”, stating that “it must be done by the buyer-owner or any person authorized on their behalf.” In the section “What do you need?”, the “official form” and the electronic or paper ITV card are highlighted.

The aforementioned sections are incorporated, as well as the “official form” titled “VEHICLE PROCEDURES” at the bottom of which, the legitimacy for data collection is indicated as the Road Safety Law.

1. The DGT, as the data controller, is requested to provide or report:

a) Regarding the annotations in the electronic workshop book system LTE, by the workshops:

- Whether there were instructions or protocols for these or for CETRAA, with the actions to be followed to:

- Verify that the data corresponds to the truthfulness, certainty, and accuracy of the repairs/maintenance carried out and noted and subsequently recorded in the Vehicle Register.

It responded on 11/10/2023 that it is understood that the workshop acts with professionalism, truthfulness, certainty, and accuracy in the information communicated to the DGT, and the workshops are responsible for the information provided to the DGT.

- Verify that informed consent is effectively obtained from the vehicle owners at the time of taking the car for repair/maintenance.

It responded that “the personal data consulted through the Electronic Maintenance Book (by license plate or chassis) to update the technical data of the vehicle is already recorded in the Vehicle Register and therefore it is not necessary to obtain the consent related to Article 6.1.a) of the data subjects for the communication of maintenance or repair data to the Vehicle Register.

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The legitimizing basis that enables the DGT to store personal data associated with the vehicle is included in its Register of Treatment Activities in accordance with the GDPR - articles 6.1.c) and 6.1.e). This personal data was collected at the time of the vehicle registration.

- Specific information provided at the time of obtaining such consent (without mentioning the existence of general data collection information clauses on the website).

It responds that “the technical data communicated through the Electronic Maintenance Book regarding the repair and maintenance of the vehicle does not require consent. The DGT is not aware if the workshops are collecting information that requires consent for purposes other than the communication of technical data to the Vehicle Register.”

- (provide a copy of five authorizations or consents for data processing obtained through the workshops, from the vehicle owners who took them for repair/maintenance.)

It reiterates the previous response.

b)

Exact date when the first uploads occur in the LTE section of the RV (oldest data) and date of the last entry in the LTE-RV. Number of workshops currently associated with the system. Number of records registered, sent by workshops associated with the LTE so far in the year 2023, detailing what is considered as a number of records (vehicle registration that is being repaired, etc.).

It responded that the oldest data are from the project tests, dated 9/03/2015, starting later voluntarily for the workshops throughout 2018. The LTE continues to receive entries, and the most recent is from 3/10/2023, the date on which this response is made.

It states that “Currently, there are no workshops directly integrated into our tool, but rather associations

or companies that are integrated into the Electronic Maintenance Book, and their workshops send the information through the association or company to which they belong. Currently, there are 5 integrated associations or companies that can send entries. As of today, around 15,000 different workshops have communicated entries through the Electronic Maintenance Book to the Vehicle Register, using the platforms of the 5 companies or associations integrated into IDEX-TALLER, due to the high cost of integration.”

During the year 2023, and up to 3/10/2023, “we have received 17,007 annotation requests (information has been recorded on 17,007 vehicles), which translates into 25,770 operations (some vehicles have multiple operations recorded in a single annotation).”

c)

Confirm that in the use of the platform by the workshops associated with the LTE system, in the platform they use, in the “search repairs” menu, it must be done invariably with both data together, not just one, of registration and chassis number (or would searching only with the registration number also yield results?)

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He responded that “Each association that is integrated into LTE as CETRAA has developed a different internal tool to offer to the workshops. The electronic maintenance book is a Web Service tool that communicates one machine with another; it does not have a web front that the workshops can use. This is the reason why the workshops do not directly use a tool from the DGT to report the LTE data, but rather use a tool that they have developed themselves. Queries to the LTE are made through the vehicle registration number; it is not necessary to use any other data to view the information that appears in the DGT in the electronic maintenance book, but only those data are displayed; no other data from the Vehicle Registry is accessible to the workshops (and even less so personal data).”

d)

For the use of the LTE system, the DGT stated that the workshops must have the IDEX TALLER computer integration installed. To this end, it is requested to inform whether this integration has been provided to CETRAA, and within this, on their web platform, their associated workshops only proceed to register with a username and password, and can directly enter data. Alternatively, each workshop, even if it belongs to CETRAA, must obtain the aforementioned IDEX integration and separately register on the platform.

In addition to this CETRAA platform, it is requested to inform whether the registration of the workshop (username and password) to operate in the system can be done by any other means. He responded that “IDEX is the Web Service tool (machine-to-machine) that communicates the computer systems of the DGT with the computer systems of the association or company that has integrated into IDEX. The workshops do not interact directly with IDEX, but access the internal tool, for example, the one developed by CETRAA, and it will be CETRAA's internal tool that collects the data reported by the workshop and sends it to the DGT. The internal tool used by CETRAA will have established the necessary security measures to ensure that only authorized users can enter its internal tool. The IDEX tool is public and directly accessible to all workshops that express interest and prove to carry out such activity; however, so far no workshop has integrated directly with IDEX, but rather the associations or companies in the sector that have integrated. The username and password mentioned refer to the specific username and password of CETRAA's internal tool, so the DGT does not manage or grant usernames and passwords.”

e)

They stated that the workshop must present the IAE. It is requested to inform at what phase or moment it is requested and in what document it is specified how and in what manner it is requested to be provided. A copy of three examples from three workshops that have submitted it. In this regard, CETRAA also stated that on their web platform <https://librotaller.com/>: it is necessary to enter the registration number in the industrial registry of the workshop to verify that the workshop is enabled.

Explain why the requirements differ depending on the entity, and provide a copy of three registrations in the industrial registry received by this CETRAA platform.

He responded that: "as no workshop has integrated directly with IDEX, we have never had to request the IAE from a workshop. In the case of the associations and companies in the sector that have integrated into IDEX, they are companies and associations that are notably and publicly dedicated to activities related to vehicle maintenance and services associated with workshops."

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In the case of workshops that send information to the LTE through their association, it is the responsibility of the association or company that has been integrated into the WS of IDEX to identify the workshop users who will use their internal tool.

- Regarding the authorized entity in the LTE, CEINOR SOFT S.L, CIF: B39574231 - it is requested that a copy of the Registration Number in the Industrial Registry be provided, which was necessary for registering as an authorized workshop, and to indicate, providing a copy of at least five vehicles with registrations in the LTE provided by said entity. It was responded that "There is no record that this workshop has sent any annotation to the electronic maintenance book, neither through CETRAA nor through any of the other users integrated into the WS of IDEX."

- In their indication of authorized workshops in the LTE, they provided the data of A28586550 - AUDATEX ESPAÑA S.A, as well as license plates of vehicles noted with the section Workshop Incident, with annotations from 2015 or 2017, for example, (...) or (...). A copy of the data provided during their registration in the system is requested, dates, whether they are still registered, and a copy of the Registration Number in the Industrial Registry. It was responded that: "AUDATEX ESPAÑA S.A. is one of the companies that has been integrated into the WS of IDEX. In the integration meetings of this company into the WS, only its CIF and corporate name were required to grant authorization to use IDEX, but no additional documentation was required. AUDATEX is no longer using the electronic maintenance book, it only participated in the initial tests of the system. Until 27/02/2017."

- The DGT provided as noted data in the LTE of the license plates: (...) and (...) by the company CIF: (...) - ***EMPRESA.8, it is requested that they provide the data they submitted for registration in the same, date, means by which it was done, and a copy of the Registration Number in the Industrial Registry. It was responded that "****EMPRESA.8 is one of the companies that has been integrated into the WS of IDEX. In the integration meetings of this company into the WS, only its CIF and corporate name were required to grant authorization to use IDEX, but no additional documentation was required. The annotations made by this company are not done as a workshop, but as a renting company that communicates voluntary mileage readings. The electronic maintenance book is a tool that allows for an in-depth understanding of the real life of vehicles; for this reason, companies in the automotive sector that manage large fleets of vehicles can integrate without reporting repairs or maintenance of their vehicles, but rather mileage readings to combat fraud in the manipulation of odometers. The first annotations sent to the electronic maintenance book date back to 13/08/2020. The mileage annotation service through IDEX-TALLER by renting companies does not involve the communication of personal data, but rather mileage readings of their own vehicles. Therefore, the General Data Protection Regulation would not apply since it concerns legal entities."

- In the list of authorized workshops for the LTE system with CIF (...), ***EMPRESA.7, the date of registration is requested and whether they are still registered.

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He responded that "The date of the first annotation received from CETRAA related to this workshop was 09/17/2020 and the date of the last annotation was 09/07/2023."

f) Why is it not indicated on either your website or CETRAA's website regarding the operation of the LTE that the vehicle owner must grant informed consent for the processing of data related to the repair of their vehicle to be included in the LTE? Or that it is voluntary, as well as the consequences if consent is given? (to be part of the VEHICLE REGISTER, which can be accessed by citizens with a legitimate interest). He responded again that: "The personal data consulted through the electronic maintenance book (by license plate or by chassis number) to update the technical data of the vehicle is already recorded in the Vehicle Register and therefore it is not necessary to obtain the consent of the interested parties for the communication of maintenance or repair data to the Vehicle Register. The legal basis that enables the DGT to store personal data associated with the vehicle is recorded in its Register of Processing Activities in accordance with the GDPR - articles 6.1 c) and 6.1 e). This personal data was collected at the time of the vehicle registration. The referenced consent is that requested by the associated workshops to communicate technical data to the electronic maintenance book, which does not correspond to that indicated in article 6.1 a) of the GDPR as it does not involve personal data. He added that "In the frequently asked questions section, the following is stated: Is it mandatory for workshops to collaborate in the project? For the moment, the incorporation of workshops into the electronic maintenance book project is voluntary, and for that reason, workshops are encouraged to participate by offering services such as access to the vehicle register for the annotation of repairs or maintenance."

g) The DGT and also the workshops have stated that when a customer presents themselves to the workshop and before giving any consent regarding the transfer of repairs, if any, the workshop can access the RV simply by viewing the license plate, and in general, knowing a license plate allows them to enter and view its data. Please confirm if this is possible, and if the access would cover the entire complete RG of that vehicle. Also, inform whether any workshop associated with the system could view the workshop book section of any vehicle that had annotations of repairs-maintenance, even if they were not performed at that workshop. Finally, if the DGT has a record of what each workshop views in the vehicle register, or of their mere consultation.

He responded that "The access provided to the workshops only facilitates technical data from the history of the electronic maintenance book, as well as the expiration date of the ITV; they do not access any other data, much less personal data that is stored in the Vehicle Register. By entering the license plate, they can consult the electronic maintenance book of any vehicle registered in Spain, regardless of whether that workshop performed the maintenance or another did. All accesses to the vehicle register are made through electronic means, and we have traceability of all consultations made and who has made them. Access to the vehicle register is authorized to promote and facilitate the proper maintenance of vehicles to the workshops that have been contracted for that purpose; at no time has it been specifically indicated by the DGT that accesses can be made before the interested party has contracted the services from the workshop and therefore has signed the."

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corresponding documentation. The consultation of the electronic maintenance book by the workshops must be used so that the workshop can know the maintenance that the car has received, and consequently can better plan the interventions that must be carried out on the vehicle. For example, when the oil filter was last changed, to know whether or not it is time to change the oil filter."

h) It was stated that the legitimizing basis for the processing of data concerning the workshops was public interest, related to Road Safety. In this regard, it must specify:

- What aspect specifies the need for such processing and the guarantees regarding the data subjects, when in fact it is limited only to the voluntary workshops that consider associating with the system?

He responded that: "Being able to consult the maintenance and repair history provides transparency to the vehicle buying and selling market and promotes the proper maintenance of vehicles. The more information available about a vehicle's maintenance, the easier it will be for a potential buyer to know and evaluate the actual condition of a vehicle and avoid fraud. The personal data consulted through

the Electronic Maintenance Book (by license plate or chassis number) to update the technical data of the vehicle is already recorded in the Vehicle Register and therefore it is not necessary to obtain the consent of the interested parties for the communication of maintenance or repair data to the Vehicle Register. The legitimizing basis that enables the DGT for the storage of personal data associated with the vehicle is recorded in its Register of Processing Activities in accordance with the GDPR - articles 6.1 c) and 6.1.e). These personal data were collected at the time of the vehicle registration. The legitimizing basis for the processing of personal data of its clients by the workshops will be what they refer to (consent or contractual), according to the relationship they have established with them.”

- They also expressed that the legitimizing basis for the processing of data of the vehicle owners who repair or maintain their vehicles in the workshop is consent, and that the workshop collects that consent. For these purposes, since the DGT is responsible for these processes, they should provide the way they inform these owners about these processes at the times when the data is collected. If there is any agreement signed with CETRAA, they should provide a copy of it.

He responded that “The consent for the recording of vehicle repairs in the vehicle register in no case refers to personal data, but to the communication of the repair (brake change, tire change, etc.) and therefore we understand that there is no need for communication between the DGT and the citizen since no personal data has been communicated. The DGT does not know if the workshops are collecting information that requires consent for a purpose other than the communication of technical data to the Vehicle Register. The consent collected in the workshop refers to the communication of technical data to the Vehicle Register, in no case does it refer to consent regarding the communication of personal data collected under the GDPR. The legitimizing basis that enables the DGT for the storage of personal data associated with the vehicle is recorded in its Register of Processing Activities in accordance with the GDPR - articles 6.1 c) and 6.1.e). These personal data were collected at the time of the vehicle registration.”

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- How is this legitimizing basis for the public interest mission and the consent of the holders implemented in the registry of processing activities, specifically in the VEHICLE REGISTER?

He responded that “The data communicated to the Vehicle Register are data related to the repair of certain parts of the vehicle. In no case is personal information requested for which the consent for the processing of personal data is required. The annotation is not made on the holder of the vehicle, but on the vehicle file. The legitimizing basis that enables the DGT for the storage of personal data associated with the vehicle is included in its Registry of Processing Activities in accordance with the GDPR - articles 6.1 c) and 6.1 e). This personal data was collected at the time of the vehicle registration.”

i) Copy of the instructions to CETRAA or to the workshops, and where this information was provided to request the deregistration in the LTE system by the workshops. Number of deregistrations requested since its implementation. If the DGT anticipated in the system the automatic deregistration for non-use of the system within a specific time.

He responded that “Computer registration by the General Directorate of Traffic. The following websites contain documentation related to the requirements and necessary data for registration:

<https://sede.dgt.gob.es/es/vehiculos/libro-taller/> and <https://librotaller.com/>”

“There is no formal procedure for workshops to deregister from the electronic maintenance book, as it is a voluntary communication; at the moment they are no longer interested in continuing to communicate data, they will simply stop sending the repairs to the DGT. Deregistration due to inactivity is not contemplated since an associated workshop may not make annotations regularly, and the annotation can be made at the request of a vehicle holder upon demand at any future time.”

j) In the annotations in the LTE, there is an authorized workshop that is the one that can use the platform, and within it, different branches or annotators can use it, which are identified with DOI numbers and who sign the communication.

- What do the initials DOI mean, if they are CIF, if they can be NIF?

He responded that DOI is the Original Identification Document, which can be DNI, CIF, or NIF depending on the holder of the vehicle or company.

“The communications to the registration book are digitally signed by the association or company that has integrated into IDEX Electronic Maintenance Book, and within that communication, not only the association that sends the data is identified, but also the workshop that has carried out the repair or maintenance on the vehicle. In the Electronic Headquarters of the DGT, where the functionality and purpose of the Electronic Maintenance Book are specified, a Welcome pack of IDEX-TALLER can be accessed, where, in the Device Manual, all the information about the exchanged data is provided, including information related to the DOI.”

- Do these annotators access the platform with the username/password of the authorized workshop?

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He responded that: “In the case of CETRAA, it facilitates the communication platform between the workshops and DGT, acting as an interface between both. Therefore, CETRAA communicates directly with DGT, identifying the workshop that has made the entry and maintaining a record of all operations performed. Each of the companies or associations integrated with the electronic maintenance book has developed its own interface to connect with the IDEX service, so the type of access required will depend on each of them. In the communication through IDEX, CETRAA's signature is validated, and the DOI of the associated workshop that makes the entries is received.”

- Among the companies associated with the LTE is CETRAA, which is not a workshop itself, and there are records in the LTE with that CIF; however, another number appears as DOI annotator, which may be another CIF. It is requested to inform who or what corresponds to that other DOI number. And if in all cases of authorization to CETRAA, a DOI of the workshop using the system must appear.

He responded that “Not all workshops have sufficient capacity to develop a computer system that allows communication with the Vehicle Registry in the manner established by DGT. CETRAA offers its service as an association to its associated workshops by providing them with the communication interface with the Vehicle Registry. CETRAA, in this case, has developed the technological tool to make entries in the Vehicle Registry (LTE). For this, it identifies itself with its digital certificate, and within the entry, it identifies the associated workshop (through the DOI annotator) that makes the entry, maintaining total traceability of the entry.”

- Also report how the platform is provided for entering data into the LTE for workshops that are not associated with CETRAA.

He responded that “Workshops that wish to register in the electronic maintenance book must present the IAE specifying that they carry out the work activity related to vehicle repair. The following websites contain documentation regarding the requirements and necessary data to register:

<https://sede.dgt.gob.es/es/vehiculos/libro-taller/> and <https://librotaller.com/>. Workshops that do not belong to CETRAA, or even those that do, are interested in integrating directly into the DGT Web Service tool (IDEX LIBRO TALLER); they are perfectly capable and authorized by DGT to carry out that integration. DGT does not require the use of any intermediary; rather, workshops can integrate directly if they wish to do so. So far, there has been no workshop, on its own, integrated into the communication of repairs and maintenance through IDEX-TALLER due to the high cost of developing the integration interface. All workshops that make entries do so through the five companies or associations that have developed the integration interface.”

k) To DGT, if knowing the name and surname and NIF of a person, or only the latter, it is possible to request and obtain, if applicable, data on vehicles registered in the Vehicle Registry, and whether any person could request and obtain it.

He responded that “Information on vehicles registered in the Vehicle Registry cannot be obtained through the Name and Surname and NIF of a company or citizen. Access to a vehicle report can only be obtained through the license plate or chassis number. Access to the technical data of the vehicle via the electronic maintenance book is only possible if you are integrated with IDEX-TALLER. That is

to say, not just anyone can access this data.”

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not even a workshop not integrated with the tool. The workshops, through the consultation tool of the electronic maintenance book, do not have access to any of these reports, nor can they consult by CIF/NIF, name and surname, or company name. They can only consult vehicle by vehicle, by license plate or chassis number.”

l) Finally, inform what role the DPD of the DGT played in the implementation, modification, or review and update of the workshop book system.

It was answered that "The Data Protection Delegate did not participate in the implementation of the workshop book system in 2018, as the data, both for entry and consultation and annotation of the vehicle, are not considered personal data," reiterating that: "The workshop only has access to technical information related to the repairs and maintenance carried out."

SIXTH:

On 11/5/2023, a proposal for resolution was issued, with the following wording:

“FIRST: That the director of the Spanish Agency for Data Protection sanctions the GENERAL DIRECTORATE OF TRAFFIC, with NIF Q2816003D, with a warning for each of the following infringements of the GDPR, articles:

- 6.1, of the GDPR, in accordance with article 83.5 a) of the GDPR and for the purposes of the prescription of the infringement qualified as very serious in article 72.1.b) of the LOPDGDD.
- 25, of the GDPR, in accordance with article 83.4 a) of the GDPR and for the purposes of the prescription of the infringement qualified as serious in article 73.d) of the LOPDGDD.
- 32, of the GDPR, in accordance with article 83.4 a) of the GDPR and for the purposes of the prescription of the infringement qualified as serious in article 73.f) of the LOPDGDD.
- 30, of the GDPR, in accordance with article 83.4 a) of the GDPR, and for the purposes of the prescription of the infringement qualified as minor in article 74.l) of the LOPDGDD.

SECOND: That the director of the Spanish Agency for Data Protection orders the GENERAL DIRECTORATE OF TRAFFIC, with NIF Q2816003D, that pursuant to article 58.2.d and f) of the GDPR, within the period determined, the DGT shall adapt to the measures indicated in the last legal basis.”

SEVENTH:

The respondent submitted allegations on 11/20/2023, stating:

1) Incorrect interpretation that the data concerning repairs/maintenance of vehicles are considered personal data, arguing that they are not, being technical data processed by the system. Therefore, it is based on an erroneous premise, and no interpretation can be made regarding the legality, security, or design of the processing.

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It reiterates that once the workshop has entered the data into the LTE, the information processed in the system regarding parts, mileage, or the vehicle's maintenance history does not constitute "in any case" information about a natural person. It argues that any maintenance or repair of a vehicle included in the LTE refers to the technical conditions of the vehicle, affecting its safety elements and road safety conditions, in accordance with the provisions of Article 11 of the RGV. "Claiming that such repairs on safety elements do not constitute technical data is not considered true and contravenes the provisions of the RGV." Such data, on its own or combined with others, could not identify any natural person.

2) In addition to not considering the alleged legal basis of Article 6.1.e) of the GDPR in the proposal, the principle of typicity has been violated in the infringement attributed under Article 6.1 of the GDPR. It

derives the existence of "a public interest in the processing of data related to repairs, maintenance, and mileage recorded in the RV, in accordance with Article 2.1 of the RGV:

"The Central Traffic Headquarters will maintain a Register of all registered vehicles, which will adopt computer means for its operation and in which will be recorded, at a minimum, the data that must be mandatorily included in the circulation permit or license, as well as any vicissitudes suffered subsequently by them or their ownership.

It will be primarily aimed at identifying the vehicle owner, understanding its technical characteristics and its suitability for circulation, verifying the inspections carried out, ensuring the mandatory automobile insurance is contracted, and compliance with other legal obligations, confirming the Vehicle Fleet and its distribution, and for other statistical purposes."

It does not agree with what is indicated in the proposal, considering that the repairs and maintenance of vehicles carried out by their owners in the workshops associated with the system should not be regarded as included within the scope of the RV, as they respond to the "vicissitudes suffered subsequently." It believes that knowledge of those repairs/maintenance would be relevant for any third party interested in acquiring the vehicle, appraisal, or valuation, to give examples of third parties with legitimate interest, aside from the mandatory inspections of the ITV, of such repairs/maintenance that occur in the meantime.

It states that also from the literal wording of the article, it can be understood that: "it would be primarily aimed at verifying certain information, among which is its suitability for circulation," considering that, although it is not mandatory for all workshops, it is encouraged in the interest of compliance with the regulations governing motor vehicle traffic and road safety, to help reduce accidents that often result from the lack of proper maintenance. The consideration in the proposal of not admitting that the technical vicissitudes of the vehicle allow for the registration of repairs/maintenance of the vehicle and form part of the legitimacy of data processing constitutes a violation of the principle of typicity for failing to establish infringing conduct.

3)

It expresses disagreement with the consideration made in the proposal that the workshops associated with the system may access the data of any vehicle, which constitutes an infringement of Article 32 of the GDPR. It estimates that the only data

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Personal data that the workshop would access would be the registration and chassis numbers, data provided by its client, with whom it has signed a contract or consent. To this effect, it includes an extension of allegations from the General Subdirectorate of Mobility Management and Technology "which outlines all the security measures that guarantee the LTE service."

In this document, in addition to referring to various security measures, it states:

- The LTE project was developed in 2015, "therefore the GDPR was not in force," and "there was no opportunity to apply Article 25 of the aforementioned GDPR."

- The workshops associated with the LTE are integrated through the ATEX system of the DGT into the data consultation system of ITV history with a specific and limited profile of the Workshop Book.

It reiterates that the workshops that consult the RV are identified when they carry out all operations and that "they may only consult the following data of the RV: model, ITV history, and repair history."

4) Regarding the infringement of Article 30 of the GDPR, it states that the change of term in the versions of the RAT from "description of processing" to "purposes" made according to the new RAT model from the Ministry of Interior does not violate Article 30 of the GDPR, which, in addition, contains the minimum required information, with the LTE included in the data processing of the RV, and "it is not necessary to include such a level of detail." The RAT model used is that of the AEPD. They consider the sanction disproportionate.

5) It requests a copy of the file that is sent to it. It states that the manner in which the sanctioning

procedure was initiated is not clearly indicated. While in the first fact of the initiation agreement it seems that it starts as a result of a query raised by a third party, however, in the same initiation agreement, in the THIRD AGREEMENT, it states: "INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirector of Data Inspection in the actions prior to the initiation of this sanctioning procedure."

6) It requests the precautionary suspension of the enforceability of the sanction, relying on Article 90.3 of the LPACAP, and that it would irreparably affect the reputation of the entity. It adds that if a firm sanctioning resolution is issued, it will proceed to file a contentious-administrative appeal.

EIGHTH:

From the actions carried out in this procedure and from the documentation in the file, the following has been established:

PROVEN FACTS

1) According to the information from the DGT website, accessed during prior actions on 23/06/2022, the project called digital maintenance book or electronic workshop book, LTE, promoted by the Central Traffic Headquarters (MINISTRY OF INTERIOR) is a service that allows workshops that voluntarily associate with

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LTE system, to record and send the revisions, mileage, modifications, repairs, and maintenance carried out on the vehicles entrusted to them by their owners through a software application to the DGT. According to information from the DGT, this can serve to reduce fraud in the sale of second-hand vehicles, providing the buyer with greater choice and selection, and relates poor or incorrect vehicle maintenance to road safety or odometer tampering.

2) Considering that not all workshops are associated with the LTE system, as it is voluntary, the information provided by the DGT on its website indicates that data from vehicles that are repaired/maintained within the LTE project (those carried out by associated workshops) is stored in its "Vehicle Register," and a complete specific report from the VEHICLE REGISTER can be obtained from the DGT for 8.67 euros, with such data appearing in a specific section called "workshop book," provided there is registered information, which depends on whether the workshops where the vehicle is taken are associated or not. The DGT recommends this complete report to vehicle buyers, which, in addition to the WORKSHOP BOOK, offers more data than the reduced report that is free of charge. The Vehicle Register, and the reports issued with its data, is public for interested parties and third parties with a legitimate and direct interest.

On 2/06/2022, the DGT provided, in preliminary proceedings, copies of vehicle reports extracted from its "Vehicle Register," in which one can see one of the records made by the LTE workshops, including, in addition to the data generally specified in the identification of the vehicle, the data of the owner or technical information, a differentiated section called "WORKSHOP BOOK" that contained various dates related to the revisions or changes of parts carried out on the vehicle and the kilometers at which each was performed. Likewise, during inspection proceedings, access was made to the DGT website, and a printout of the results of the query made on the page was obtained.

Website <https://sede.dgt.gob.es/es/vehiculos/informe-devehiculo/index.shtml> (with information about the different types of reports from the General Directorate of Traffic) and it is noted that the complete report also contains information about the maintenance of the requested vehicle, and that this matter is regulated in the General Vehicle Regulation.

There is a section titled "How to interpret the reports? Odometer reading history," and it is indicated that "this section compiles all the odometer readings that have been reported to the DGT, indicating the date of the reading and its source, whether it be an ITV station, a voluntary declaration from the owner, readings from workshops... The DGT is not responsible for the accuracy of the readings as

they have been provided by external entities.” This procedure also evaluates the recording of kilometers in the RV reports, derived from the readings of workshops associated with the aforementioned LTE.

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It is deduced that if the owner takes their vehicle to be repaired at an entity not associated with the system, no data regarding that repair will appear in the vehicle register, section WORKSHOP BOOK.

3) For its part, in previous proceedings, it was verified that one of the associations of workshops, the SPANISH CONFEDERATION OF AUTOMOBILE REPAIR WORKSHOPS AND SIMILAR - CETRAA, offers on its website: librotaller.com, information about what the LTE is: “A platform developed by the Spanish Confederation of Automobile Repair Workshops and Similar (CETRAA), in collaboration with the General Directorate of Traffic (DGT), which allows all Spanish workshops to register maintenance and repair actions performed on the vehicle's safety elements in the DGT servers.”

It reiterates what was stated by the DGT regarding the destination of that data, which is: “The data entered will be available in the Vehicle Report of the DGT, which any citizen can access,” and that “the workshops registered on ‘librotaller.com’ will be able to not only enter data into the platform but also consult the repair history of any vehicle by entering a license plate number.” (digital maintenance history of any vehicle as an advantage for the associated workshop).

“Furthermore, when workshops consult the repair register of a vehicle through ‘librotaller.com’, they will also access the history of Technical Vehicle Inspections (ITV), including both those with favorable results and those that have not been passed. Similarly, other relevant information is displayed, such as the reason for the inspection or the vehicle's mileage.

It concludes by stating that: “Any legally established workshop can register on LibroTaller.com and access the platform after making a one-time payment of €20 for administrative expenses.”

4)

According to the information provided on 18/04/2022 in previous proceedings by CETRAA, workshops that wish to voluntarily associate with the LTE system can do so by completing a registration form on their workshop book platform, which collects the following data: email, User Name, Password, Name of the registered workshop, CIF/NIF of the workshop, ID number of the person, Registration number in the Industrial Register (the DGT indicates the IAE), Phone. The box for “Legal notice and privacy policy” must also be accepted. In its legal notice section, the information regulating the use of the service of the internet portal www.cetraa.com, the website of CETRAA, responsible for the processed data, is included, and under “Purposes”: the maintenance and management of the relationship with the User, as well as information tasks. In the section titled “registration of files and forms,” it is indicated that “Completing the registration form is mandatory to access and enjoy certain services offered on the website,” without mentioning any aspect regarding the sending of data to the DGT or about the data collected from the vehicle owner within the framework of the LTE project. In the section “data transfer to third parties,” it is indicated that CETRAA will not transfer data to third parties.

CETRAA details that, once the workshop is registered, it can enter new data for sending or search for repairs. For the former, the “create incident” screen is filled out, specifying whether it is a repair or maintenance, followed by the section of

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complete the data for “chassis”, “registration”, “kms...”, “importance”, “concepts”, which can be, for example, “vehicle address”.

In the option of: “Search repairs”, there are two separate boxes: “registration” / “chassis” to enter and by clicking “search”, it offers the annotations made previously in the LTE, which, according to

CETRAA, are "registered in the DGT database and in the ITVS history". In the example provided, data from the same vehicle can be seen, with ITV dates from 2015 to 2021, "favorable", or "unfavorable".

5) According to the DGT, the data that forms part of the electronic maintenance book or LTE, are: (annotation of repairs, maintenance, and dates of completion and mileage at that date), and the workshops add in previous actions: "inspections, total loss or partial loss". This data, according to the DGT, is stored in the "vehicle registration" processing, with the DGT being responsible for the processing and its retention period coinciding with that of the vehicle registration processing, for the necessary time to fulfill the purpose for which it was collected and to determine the possible responsibilities that may arise from that purpose and the processing of the data.

6) According to the DGT, the websites where workshops can register in the workshop book are <https://sede.dgt.gob.es/es/vehículos/libro-taller/> and <https://librotaller.com/>- According to information provided by the DGT in previous actions, there were SIX associations or companies integrated into the LTE system that sent annotations via their platforms to the DGT vehicle registration, integrated into IDEX TALLER (acronym for Incorporation of Data from External Entities). In tests, the DGT indicates that there are FIVE of the aforementioned associations or companies "that notably and publicly engage in activities related to vehicle maintenance and services associated with workshops".

The mentioned associations or companies comprise about 15,000 workshops that have communicated annotations. Directly and individually, there is currently no workshop integrated into the IDEX TALLER system. The DGT reported in tests that data continues to be registered, as of 3/10/2023, on 17,007 vehicles. The DGT stated about the technology in use that:

- The electronic maintenance book "is a Web Service tool that communicates one machine with another. IDEX is the Web Service tool (machine-to-machine) that communicates the computer systems of the DGT with the computer systems of the association or company that has been integrated into IDEX.

- The workshops or associations, in this case, there are only associations, "are integrated electronically into this project through the web service after registration with the DGT, being necessary to "have the updated public key of our electronic certificates from our domains installed in the trusted repository of the server used in the integration" and according to the attached document (Manual included in the Welcome Pack), that "the Web Service will be published encrypted using SSL and applies the WS-Security (Web Services Security) communication protocol that provides a secure means with the DGT for the use of the service".

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- In this case, where there are no workshops associated with the system, but rather associations, the DGT stated that: "The workshops do not interact directly with IDEX, but access the internal tool, for example, the one developed by CETRAA, and it will be CETRAA's internal tool that collects the data reported by the workshop and sends it to the DGT."

- The IDEX tool is public and directly accessible to all workshops that express interest and prove they carry out such activity; however, so far no workshop has integrated directly with IDEX, but rather it has been the associations or companies in the sector that have integrated. The username and password referred to pertain to the specific username and password of CETRAA's internal tool, so the DGT stated that it does not manage or grant usernames and passwords.

- The DGT stated that the internal tool used by CETRAA must have established the necessary security measures to ensure that only authorized users can access its internal tool.

- The DGT stated that the computer system for data recording that the workshops send to the DGT (vehicle registration) is daily and that the repair and maintenance data are sent together, including, if applicable, the date of completion and the mileage as of that date.

The DGT's website provides information about the workshops associated with the LTE platform, although its update is not guaranteed because some do not use the system anymore or have never used it.

It is noted that one of the associations of the FIVE, ***EMPRESA SA.8, is not even a workshop, but a vehicle rental company and provides mileage data for its vehicles; however, due to its status as a legal entity, the DGT considers that the GDPR does not apply.

The DGT provided in prior proceedings a copy of the "Manual for incorporating workshop data-DGT, (data incorporation artifact from external entities, IDEX-WORKSHOP) from the IT Management, last modified 27/05/2014, which aims to describe the interface for incorporating information related to repairs and other important actions of vehicles (WORKSHOP) to the DGT, with the information being sent via a web service.

7) For its part, the DGT informed in prior proceedings on 02/06/2022, that the LTE is "a passive security element, based on public interest, the DGT can request the adhering workshops to provide the previously indicated data (chassis number, license plate, and repairs or maintenance). The workshop may only provide such data when the user has expressly authorized it (usually by checking a box on the work order). In summary, the workshop provides the data based on the express consent of the interested party, while the DGT requests them based on public interest." Nevertheless, in the same prior proceedings, when asked to identify and prove the subscription of a contract or any legal act of data processing assignment managed in the LTE, in accordance with the provisions of Article 28 of the GDPR, it did not provide a copy of any contract, stating that the workshop only accesses technical information regarding "modifications."

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carried out, with access limited to the license plates indicated by the clients, with a contract existing between the workshop and the client."

In response to the request for evidence to the DGT for a contract or legal act that would enable the collection of data on behalf of the DGT from individuals who take their vehicles to workshops for maintenance or repair, and the data recorded in the workshop log, which then transfers to the "vehicle register," the DGT reiterated that "the workshop only accesses technical information related to modifications made, limited to the license plates indicated by the clients, with a contract existing between the workshop and the client."

It also stated that workshops do not access any personal data collected in the General Vehicle Register through the workshop log, adding later that "the workshop may only transfer such data when the user has authorized it (usually by checking a box on the work order)."

The DGT has stated that workshops associated with the system, in the performance of their functions within the DGT system, can access data from the RV and technical inspections of vehicles listed therein. Workshops associated with the system can verify the repairs and maintenance of any vehicle, whether it was repaired in the same workshop or not. The system is configured to access only with the license plate number or chassis number, so knowing either of these data points allows any workshop to see both the maintenance operations or repairs carried out by them or by other workshops, or if no data is listed, because there is no prior repair history, as well as the ITV inspections that the vehicles have passed, along with their results.

Some workshops also added that: "The data provided to the DGT does not have the character of personal data, since both the license plate and chassis number are data known by the DGT; in fact, the DGT is the designated manager of that data. These data are simply used as identifiers to communicate the intervention carried out on the vehicle, which in no case are personal data."

8) In the Record of Processing Activities (RAT) of the DGT: "Vehicle Register" updated as of 29/06/2022, it states:

"description of the processing" Register of vehicle owners, long-term lessees, and habitual drivers, "categories of interested parties" Natural and legal persons who are owners/lessees/habitual drivers/holders of vehicles,

"description categories personal data" names and surnames, address, license plate, chassis number...

"data transfer," among others, to citizens with a legitimate interest. Workshops for repair/maintenance

or their Associations are not listed.

“legal basis: Processing necessary for compliance with a legal obligation applicable to the data controller, art. 6.1.c) of the GDPR, citing the LSV and the RGV among others, and “Processing necessary for the performance of a task carried out in

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public interest or in the exercise of public powers conferred on the data controller, art. 6.1.e) of the GDPR.”

In the version extracted in tests, version 27/09/2023, “description of the processing” no longer appears, but rather “Purposes: Management of personal data associated with registered vehicle registrations.”

9) The DGT does not inform the vehicle owner about the processing of personal data carried out with the LTE project in which associated workshops send repair/maintenance data (total loss, partial loss) /mileage to the DGT (vehicle registration).

Neither in the information provided by the DGT on its website about the LTE, nor in that contained on CETRAA's website, is there any indication regarding the obligations or rights of vehicle owners who go to the workshop concerning the implications that may exist regarding their personal data. In this file, the DGT has indicated regarding the data that workshops collect from these owners and their vehicles on which they carry out repair or maintenance operations and send to the DGT, that personal data is not being collected, but rather technical data of the vehicle, which, on the other hand, is already recorded in the vehicle register.

When questioned in the same LTE project in tests about how it obtained informed consent from vehicle owners to transfer their data and that of the repair/maintenance to the DGT through the workshops, the DGT indicated that the registration or chassis data from which the sending through the LTE is based are data that are already recorded in the Vehicle Register and an update of “technical data of the vehicle that is already recorded.”

10) The DGT informed on 2/06/2022 in preliminary proceedings that workshops can find information about the operation of the LTE platform, registration system, on its website and on the website of librotaller.com, which belongs to the private entity CETRAA. For deregistration from the system, the DGT stated in tests that it has not established any system, indicating that it would be a non-use of the tool. If a workshop were to associate with the use of the LTE tool, the information about data protection that the DGT claimed to have is located at: <https://www.dgt.es/contenido/proteccion-de-datos/>), which does not contain any specification regarding the data processing derived from the LTE.

Regarding any type of confidentiality clause directed at the workshops on the mentioned platform, the DGT indicated in preliminary proceedings that they have created models, but for this specific case, no validity of any type of notice created for this purpose is provided.

11) Regarding the information that the DGT provides to users, in preliminary proceedings, the DGT indicated that “the workshop may only transfer those data when the user has expressly authorized it—usually a checkbox in the work order,” although the DGT is the data controller.

12) According to the information provided by the DGT in preliminary proceedings, in tests, and allegations to the proposal, the data of all vehicles included in the LTE can be consulted by a workshop that is associated with the PROYECTO IDEX LIBRO TALLER system, regardless of whether that workshop carried out the maintenance or another, being able to consult the history of

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all repairs/maintenance of the vehicle that had data in the WORKSHOP BOOK section, in addition to

the data from the ITV inspections, regardless of the workshop where they were carried out, and this in order to facilitate the work to be performed on the vehicle to the associated workshops. The DGT indicated in tests that from the inquiries made by the associated workshops to the LTE, it has traceability of those accesses.

Although the DGT has not stated that such accesses can be made before the interested party has contracted the services of the workshop, it could undoubtedly make such an inquiry through only the "license plate" data of any vehicle.

When information was requested from several workshops about the consultation system to the LTE, they indicated that with the license plate annotation they could see the data of any vehicle in that section, whether it had been repaired, serviced, or had maintenance operations carried out on it, as well as in another workshop in order to facilitate their task.

As a consequence, workshops not associated with the system do not find their work facilitated, as they cannot access the aforementioned maintenance history of the vehicle that may exist in the LTE of the Vehicle Register.

13) When questioned whether there were instructions or protocols within the LTE project for the workshops or for the CETRAA regarding the actions to be followed to verify that the data recorded and transferred to the DGT corresponds to the truthfulness, certainty, and accuracy of the repairs/maintenance carried out and recorded in the Vehicle Register, the DGT responded that it believes that the workshop acts with professionalism, truthfulness, certainty, accuracy, and is responsible for the information it communicates to the DGT. The DGT stated that neither in the implementation nor in the development of the LTE system has the DPD participated.

14) According to the DGT's statements in allegations to the proposal, no plan was made regarding the treatment of personal data by design for the implementation of the LTE. In this procedure, it has been learned that the LTE project began testing in 2015, although there are recorded data from the LTE from that year, indicating that it was established in 2018.

LEGAL GROUNDS

I Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II Applicable sectoral regulations

Royal Decree 2822/1998, of 23/12, which approves the General Vehicle Regulation (RGV), develops, complements, and details the articulated text of Royal Legislative Decree 6/2015 of 30/10, which approves the consolidated text of the Law on traffic, circulation of motor vehicles, and road safety (LSV).

Article 5 of the LSV provides that the competencies of the Ministry of the Interior include, among others:

"(...)

d) The registration and issuance of circulation permits for motor vehicles,

(...)

a) The registers of vehicles, drivers, and offenders... in the terms that are determined by regulation."

Additionally, its Article 66, regarding circulation permits, indicates that vehicles must obtain the corresponding circulation permit prior to being able to circulate, also observing its purpose: "aimed at verifying that they are in perfect working order and that their characteristics, equipment, parts, and accessories comply with the technical specifications that are established by regulation...", and must be renewed, among other circumstances, "when the registered ownership of the vehicle changes."

On the other hand, Article 67 of the same LSV, under the title: "Other documentation," provides that (i)

vehicles, their equipment, and their parts and accessories must be previously homologated or subject to unit technical inspection before being admitted to circulation, in the terms that are determined by regulation, (ii) that such vehicles must be identifiable, bearing engraved or stamped, in a legible and indelible manner, the marks and passwords that are required by regulation in order to individualize them, authenticate their manufacture, and specify their use or subsequent coupling of important elements.

Furthermore, the Explanatory Memorandum of the RGV states that: "Vehicles are movable property easily identifiable through their license plates and the chassis number or the self-supporting structure (Articles 8, 49, and Annex 18 of the Regulation) and, therefore, susceptible to certain registration publicity."

Article 2 of the aforementioned RGV states: "vehicle register":

"1. The Central Traffic Headquarters will maintain a Register of all registered vehicles, which will adopt computer means for its operation and in which will appear, at least, the data that must be mandatorily recorded in the circulation permit or license, as well as any vicissitudes subsequently suffered by them or their ownership.

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It will be primarily aimed at identifying the vehicle owner, understanding its technical characteristics and its suitability for circulation, verifying the inspections carried out, confirming the existence of mandatory automobile insurance, and compliance with other legal obligations, as well as verifying the Vehicle Fleet and its distribution, and for other statistical purposes.

The Vehicle Register will have a purely administrative nature, will be public for interested parties and third parties with a legitimate and direct interest, through simple informative notes or certifications, and the data contained therein will not prejudice issues of ownership, contract compliance, and, in general, any civil or commercial matters that may arise regarding the vehicles.

It will also have a supportive function for the various public administrations, judicial bodies, and civil or commercial registries with which it is related.

The operation of the Register, the form and effects of its annotations, as well as the scope of its publicity will also be adjusted to the regulations set forth in Annex I.

Likewise, the rest of the applicable regulations establish different provisions regarding the annotations that must appear in the aforementioned register as a result of (i) technical issues affecting vehicles, (ii) tax issues impacting vehicles and their owners, (iii) as a corollary of the establishment of certain legal guarantees - seals, liens, and/or restrictions on disposal -, (iv) as a result of certain sanctions imposed in relation to drivers and/or road transport, and (v) concerning issues related to the mandatory insurance of motor vehicles.

The circulation permit, whose purposes are indicated in the aforementioned Article 66 of the LSV, corresponds to a harmonized model that must be issued by the EU member states for vehicles that are registered in accordance with their national legislation (Directive 1999/37/EC of the Council, of 29/04, regarding the registration documents of vehicles, amended by Directive 2003/127/EC of the Commission).

Article 29 of the RGV establishes that the circulation permit and the circulation license will conform, regarding their model and content, to what is indicated in Annex XIII of the same. Annex XIII, in its section B), indicates:

"... 1. The circulation permit will be green, in format....

A-Registration number.

B-Date of first registration.

C.1.1 Last name or business name.

C.1.2 First name.

C.1.3 Address.

C.4 c) Is not identified in the circulation permit as the owner of the vehicle.

D.1 Brand.

D.2 Type/Variant/Version (if applicable).

D.3 Trade name.

(D.4) Intended service.

E -Identification number.

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F.1 Maximum technically permissible load (in kg) (except for motorcycles).

F.2 Maximum permissible load of the vehicle in circulation in Spain (in kg).

G-Vehicle weight in service with bodywork, and with coupling device if it is a tractor vehicle of a category other than M1 (in kg).

H-Validity period of registration, if not unlimited.

I-Date of registration referred to in this permit.

(I.1) Date of issuance.

(I.2) Place of issuance.

K -Approval number (if applicable).

P.1 Engine displacement (in cm³).

P.2 Maximum net power (in kW) (if applicable).

P.3 Type of fuel or energy source.

Q-Power-to-weight ratio (in kW/kg) (only for motorcycles).

S.1 Number of seating places, including the driver's seat.

S.2 Number of standing places (if applicable)."

According to current regulations, the identification of the owner is one of the purposes provided for in the RGV, among others, a register that has a public nature, managed by the DGT, sufficient for the consultation of its data is the assertion of the existence of a legitimate and direct interest.

In accordance with these provisions, it should be indicated that the purpose (personal data will be collected for determined, explicit, and legitimate purposes...) and the legitimate activity of the data processor will delimit the possibility of collecting and processing these data, and such data processing should also be limited to the data provided or suitable for such purpose. Thus, the processing of data that exceeds what is necessary for the fulfillment of the intended purpose is not lawful, as it may infringe the principle of "data minimization," as stated in Article 5.1.c) of the GDPR. At the same time, the data may only be used for the purposes that justify that collection (principle of purpose limitation) and of which the affected party must be informed - according to Articles 13 and 14 of the GDPR - and it is not lawful to use it for other incompatible purposes.

III Scope of application - Personal data

In this case, it should be based on the habitual and everyday fact in which a vehicle owner, a natural person, takes the vehicle to a repair shop, whether to change components, check the vehicle, or maintain it, or to repair a malfunction suffered.

It is a private and particular act, from which the DGT, through the workshops associated with the LTE system, extracts a series of information.

It will be examined whether, under the current regulations, the data from such repairs carried out in the workshops can be considered personal data. It should be based on the current regulations mentioned in the previous section.

Article 4 of the GDPR, under the heading "Definitions," provides the following:

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“1) ‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is considered to be any person whose identity can be determined, directly or indirectly, in particular by means of an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that person;
2) ‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure, or destruction.”
7) ‘data controller’ or ‘controller’: the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be laid down by the law of the Union or of the Member States.”

Within the RGV it is indicated:

Additional provision thirteenth. Protection of personal data.

“The processing of personal data resulting from the application of this Law shall be carried out in accordance with the provisions of the current regulations on the protection of personal data.”

Recital 1 of the GDPR states:

“The protection of natural persons in relation to the processing of personal data is a fundamental right. Article 8(1) of the Charter of Fundamental Rights of the European Union (‘the Charter’) and Article 16(1) of the Treaty on the Functioning of the European Union (TFEU) provide that everyone has the right to the protection of personal data concerning them.”

With the consequence that “All processing of personal data must be lawful and fair. It must be clear to natural persons that their personal data is being collected, used, consulted, or otherwise processed, as well as the extent to which such data is or will be processed,” recital 39.

The consideration of personal data that concerns them should not be interpreted too restrictively. This is interpreted by Guidelines 1/2022 on the rights of data subjects, right of access, version 2.0, adopted on 28/03/2023, by the European Data Protection Board and available on its website. In its paragraph 104, it states that “The words ‘personal data concerning them’ should not be interpreted in an ‘excessively restrictive’ manner by data controllers, as already stated by the Article 29 Working Party in relation to the right to data portability.”

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Opinion 4/2007 of the Article 29 Working Party, adopted on 20/06, WP 136, regarding the concept of personal data, indicates that it is: any information relating to an identified or identifiable natural person, and adds:

- “In cases where, at first glance, the available identifiers do not allow for the singularization of a specific person, that person may still be ‘identifiable’ because that information combined with other data (whether the data controller is aware of them or not) will allow distinguishing that person from others.”

- “On some occasions, the information provided by the data refers not so much to people as to objects. These objects usually belong to someone, or may be under the influence of a person or exert influence over them, or may have a certain physical or geographical proximity to people or other objects. In such cases, it can only be considered that the information refers indirectly to those people or objects.”

The definition reflects the legislator's intention to maintain a broad concept of “personal data,” which requires an interpretation that encompasses all information that can be linked to a person, or refers to an identifiable person, with the aim of protecting the freedoms and fundamental rights of natural persons, particularly their right to privacy concerning the processing of personal data.

The GDPR establishes in its Recital (26): “The principles of data protection must apply to all

information relating to an identified or identifiable natural person. (...) To determine whether there is a reasonable likelihood that means will be used to identify a natural person, all objective factors must be taken into account, such as the costs and time required for identification, taking into account both the technology available at the time of processing and technological developments."

The aforementioned breadth in the definition of personal data is defined by:

- "any information," including all those data that provide information, whatever the type of this information, which must have a broad interpretation, encompassing subjective or objective information including assessments, diagnoses, or opinions.
- "about" a natural person, thus relating any type of information about a natural person. Here it is essential to connect the purpose of the information with the "about" whom it concerns and the effects it may have for that person.

Opinion 4/2007 exemplifies its meaning with: "the data included in the personal file of a person stored in the human resources department of their company, which are clearly related to their situation as an employee of that company. Although it is not always so evident to establish that the information is 'about' a specific person. On some occasions, the information provided by the data refers not so much to people as to objects. These objects usually belong to someone, or may be under the influence of a person or their authorized representatives, or exert influence over them, or may have a certain physical or geographical proximity to people or other objects. In such cases, it can only be considered that the information indirectly refers to those people or objects."

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refers to those persons or objects. A similar analysis can be applied when the data refers primarily to processes or facts, such as the operation of a machine when human intervention is necessary. Under certain circumstances, this information may also be considered information "about" a person."

- "identified or identifiable" refers to immediate identification or to any person whose identity can be determined, directly or indirectly, in the sense that, to qualify information as personal data, it is not necessary for such information to allow the identification of the data subject by itself. From the very legal definition, it can be understood that it is not even necessary for the personal data to identify a specific person at the moment, but simply that through that personal data, the same person "can" be identified.

Opinion 4/2007 adds: "In cases where, at first glance, the available identifiers do not allow for the singularization of a specific person, that person may still be 'identifiable' because that information combined with other data (whether the data controller is aware of them or not) will allow distinguishing that person from others."

Article 68 of the LSV establishes the obligation to register motor vehicles in order to circulate, with an ordinary registration that will be unique to the vehicle, except for exceptions. Its Annex I defines the vehicle owner as the person in whose name the vehicle is registered in the corresponding official register, which is the "vehicle register" of the DGT.

To register a vehicle, according to the information on the DGT website, it must be requested by the buyer-owner of the vehicle or any person authorized on their behalf. In the DGT form established for this purpose, under the section: "VEHICLE DATA," the registration number, the registration date, and the chassis number are listed, while in the section ADDRESS OF THE VEHICLE, the address of the vehicle owner's registered residence will be indicated. In the data of the interested party, the name and surname, name: corporate name, date of birth, telephone, and email are included. Thus, the registration number and/or the chassis number of a vehicle refer to its owner, and to their address, which will also be the address of the vehicle. The transfers of the vehicle imply the registration of the new owner. A history of the vehicle can be formed over time.

Regarding the chassis number of the vehicle, Article 29 of the RGV provides that the circulation permit and the circulation license shall conform, in terms of their model and content, to what is indicated in Annex XIII of the same. And if we refer to said Annex XIII, its section B) regulates the model and

content of the circulation permit for vehicles that are subject to ordinary registration, among which data includes both the surname, name, and address of the owner as well as the "identification number" (section E), information that refers to the "identification number, engraved, stamped, or inscribed in an indelible manner on the chassis or self-supporting structure" mentioned in Article 8 of the General Vehicle Regulation. In short, to the identification number of the chassis.

Consequently, said chassis number is information that is recorded in the Vehicle Register and has the same character of personal data as the vehicle registration number, since the vehicle owner is identifiable through that data. To determine whether a

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A natural person is identifiable; all means, such as singularization, that can reasonably be used by the data controller or any other person to identify the natural person directly or indirectly must be taken into account, as established by the GDPR. Therefore, it must be concluded that license plates and vehicle identification numbers constitute personal data as they meet these characteristics, since identifying the owner of the vehicles will only require consulting the Vehicle Register, referred to in the General Vehicle Regulation, whose essential purpose is the identification of the owner, for which only the invocation of the legitimate interest of the requester will be necessary.

Both aspects are corroborated by the judgment of the Court of Justice of the European Union, Third Chamber, dated 9/11/2023, case number 319/2022, matter C-319/2022, which deals with a dispute between the German Professional Association of Wholesale Trade in Automobile Parts and SCANIA, a Swedish vehicle manufacturer, regarding the provision by the latter of information from the on-board diagnostic system of vehicles and information on the repair and maintenance of vehicles.

The judgment addresses information related to the VIN, equivalent to the vehicle identification number, an alphanumeric code assigned to a vehicle by the manufacturer to ensure the proper identification of any vehicle, which will be unique and assigned to a specific vehicle without the possibility of error. The VIN is included in the vehicle registration document, just like the license plate.

The Court's doctrine regarding the VIN is reproduced here for its relevance.

To respond to this preliminary question, it is necessary to examine, at first, whether the VIN is included in the concept of "personal data," as defined in Article 4, point 1, of the GDPR, which defines this concept as "any information relating to an identified or identifiable natural person."

This definition is applicable when, due to its content, purpose, and effects, the information in question is related to a specific natural person [judgment of December 8, 2022, *Inspektor v Inspektorata kam Visshia sadeben savet* (Purposes of personal data processing - Criminal investigation) C-180/21, EU:C:2022:967, paragraph 70]. To determine whether a natural person is identifiable, directly or indirectly, all means that can reasonably be used by the data controller, as defined in Article 4, point 7, of the GDPR, or by any other subject to identify that person must be considered, without requiring, however, that all information allowing the identification of the data subject be held by a single entity (see, in this regard, the judgment of October 19, 2016, *Breyer*, C-582/14, EU:C:2016:779, paragraphs 42 and 43).

As the Advocate General has pointed out in paragraphs 34 and 39 of his conclusions, a data point such as the VIN—which is defined in Article 2, point 2, of Regulation No. 19/2011 as the alphanumeric code assigned to a vehicle by the manufacturer to ensure the proper identification of any vehicle and which, as such, lacks "personal" character—acquires that character for those who reasonably have means that...

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allow associating it with a specific person.

47.

Well, from Annex I, point II.5, of Directive 1999/37, it follows that the VIN must appear on the vehicle's registration certificate, along with the name and address of the holder of that certificate. Furthermore, under points II.5 and II.6 of that annex, a natural person may be designated in that certificate as the owner of the vehicle or as a person who can dispose of the vehicle in a legal capacity other than that of owner.

48.

In these circumstances, the VIN constitutes personal data, in the sense of Article 4, point 1, of the GDPR, of the natural person mentioned in the certificate itself, to the extent that anyone who has access to it could have means that allow them to use it to identify the owner of the vehicle in question or the person who may dispose of that vehicle in a legal capacity other than that of owner.

(...)

51.

The concept of "processing" is defined in Article 4, point 2, of the GDPR as any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as communication by transmission, dissemination, or any other form of enabling access.

Therefore, this concept includes any form of enabling access to a VIN by the "data controller," in the sense of Article 4, point 7, of that Regulation, when that VIN allows for the identification of a natural person.

In this case, both the chassis number and the vehicle registration are regulated by the Road Safety Law and its RGV, which must be recorded in the RV, and are associated with the ownership of the vehicle at a specific moment, with ownerships potentially varying throughout the vehicle's useful life, containing its history of owners. Similarly, one can speak of a history of ITVs as contemplated in the aforementioned regulations or a history of the technical variations of the vehicle or adaptations that, duly authorized, must appear in that register; all of these may concern the owner at any given time. Any owner of a vehicle must always have a registration plate on it to be able to circulate, whether they are natural persons or legal entities. Furthermore, the data of the current owner of the vehicle is one of those provided by the DGT in the "vehicle report" through the "consultation of its public register for interested parties and third parties with a legitimate and direct interest, through simple informative notes or certifications." (art 2 RGV). Thus, regardless of the source of the information, knowing the vehicle's registration plate allows one to know, because there is a public register regulated by law and developed by the RGV, who its owner is, which is associated in that vehicle register with the information about the vehicle of which they are the owner.

The AEPD has understood in repeated advisory legal reports since 2007, such as report 425 of 08/02/2007, that registration numbers are personal data.

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It is possible to ascertain ownership through the vehicle registration in the consultation of the Vehicle Registry of the DGT. It was noted in said report that, following the criteria established by the various Recommendations issued by the Committee of Ministers of the Council of Europe, which indicate that a person should be considered identifiable when their identification does not require disproportionate timeframes or activities, it must be concluded that license plates constitute personal data as they meet these characteristics, since the identification of the owner of vehicles with known license plates will only require consulting the Vehicle Registry, referred to in the RGV, approved by Royal Decree 2822/1998, of 23/12, whose essential purpose is the identification of the owner, for which only the legitimate interest of the applicant needs to be invoked.

The Preamble of the RGV states that "Vehicles are movable property easily identifiable through their license plates and the chassis number or self-supporting structure (articles 8, 49, and annex 18 of the Regulation) and, therefore, susceptible to certain registration publicity."

The license plate data is used, for example, for the imposition of penalties in vehicle traffic matters,

with the complaint bulletin being sent to its owner, sometimes with the obligation to identify the driver of the vehicle on the day and time of the infraction, which can initially serve for the identification of the owner recorded in administrative registers such as that of vehicles of the DGT for such identification. The license plate data can lead to detailed information as demonstrated by the DGT through the complete report of a vehicle. From this data, not only the owner can be obtained, who may be a natural person, but also the address of the vehicle which, according to the form "vehicle procedures" that the DGT provides for, among other things, carrying out the registration process, refers to the "registered address of the vehicle owner," with an obligation to notify the DGT of any change in the owner's address. The DGT registry collects changes in vehicle ownership and the title under which they occur. Associated with the license plate, which is itself personal data, is also the information contained in the workshop book, repair/maintenance/accidents concerning the vehicle itself, to which the mileage is additionally associated, all of which are data that also concern or affect the owners of the vehicles that are repaired or maintained in the aforementioned associated workshops.

Based on the above considerations, the claims of the DGT, and also of some workshops, regarding the transmission of only technical data by the workshops, without including the data of the owner, which implies that no personal data is collected because the technical data of the license plate or chassis is already recorded, must be rebutted as these technical data of the vehicle would be associated with its registered owner, and therefore it is not difficult to know who the owner may be for administrative purposes; thus, it is information that concerns that person as the owner of the vehicle. It should be noted that, although the workshop accesses the transfer of data in the IT application through the option of the license plate or chassis of the vehicle, it is merely the means that the DGT has established, without altering the fact that reference is being made to a possibility of ultimately linking that information with the vehicle's owner, without the means.

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employee for the search diffuses the personal nature of the data that is processed with this tool. Therefore, allegations that data already registered in the RV or that are merely technical in nature, with no connection to personal data, are not admissible.

In short, the data collected by the DGT through integrated computer platforms in its IDEX system (incorporation of data from external entities), which are provided by associations of workshops or business owners in the sector, and which are integrated into the RV, are data of the owners of the vehicles subject to repair/maintenance. Data that will form part of the maintenance/repair history of the vehicle, which contains the identity data of the individuals who have successively been owners of the vehicle associated with the repairs that each has carried out, or those that the same vehicle owner has performed during the life of the vehicle.

IV. Responsible for the processing of personal data

Although according to the DGT, the collection of data in the LTE of customers who go to the workshop is justified by the maintenance of a contractual legal relationship that requires the processing of their data by the workshop. Therefore, their bilateral workshop-owner relationship would find legitimacy in Article 6.1.b) of the GDPR.

The DGT has established the purposes and means not only technological for the processing of LTE data, which shapes the legal position of the data controller. The DGT has imposed the conditions for the aforementioned processing of the LTE, considering itself responsible for the processing of personal data, integrating this activity, as indicated, into the activity of processing the Vehicle Register, with the DGT being competent for such processing.

Additionally, the DGT has also established who will have access to this data, as offered in the information on the website, by stating that any citizen with a legitimate interest may consult it through the service of the "complete vehicle report" offered by the DGT, upon payment of a fee. Furthermore, it should be noted that the complete report is the only one that provides this information about the

repairs/maintenance/mileage of the vehicle, but only if the vehicle register has it, a circumstance that the consulting citizen will initially be unaware of, and that depends on whether the workshop where the repair or maintenance of the vehicle was carried out is in the system.

That is to say, the data processing operations related to the LTE matter do not reach the generality of vehicles, as those that are not repaired in such associated workshops or when the owner decides not to provide the DGT with such data in cases where they have been expressly informed of the option, a fact that is not clear whether it occurs in the operation of the system as inferred from the responses of the workshops.

In both cases, whether when making the repair the customer is offered the option to consent to the processing of their data by the DGT or if they are not offered the option...

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Option the DGT is responsible for such processing as the workshops collect data concerning vehicle repairs and transfer/communicate it in accordance with the provisions of the LTE project to the DGT, which stores the data in the VEHICLE REGISTER, through that platform, established and managed also by the DGT. It is responsible for this data collection, implementing the means, purposes, tools, and the transfer of that data to the computer system of the vehicle register managed by the same DGT. Therefore, the means of processing, the why, and the how of the processing, the purpose, are in this case imposed by the DGT, thus constituting, as stated at the beginning, the data controller.

It is appropriate here to refer to the DGT's allegation regarding the clarification of how the present sanctioning procedure was initiated in which it is required to assume responsibility as the data controller. In this case, it is clear in the initiation agreement of the procedure that the actions were initiated by a written request from the director of the AEPD, with the reference included in the initiation agreement stating that it is agreed to "incorporate the complaint" being an inadvertent error.

Furthermore, it should be indicated that the report from the Legal Office cited at the beginning of the investigation actions is included in the evidence procedure to which the DGT has had access through obtaining a copy of the file. Moreover, as stated in Article 63.1 of the LPACAPAP: "Sanctioning procedures will always be initiated ex officio by agreement of the competent body."

V Regulation in the RV of the data processed in the LTE

Regarding the DGT's allegation that no personal data is processed because what is entered by the workshops into the LTE usage platform are technical data that would already appear in the RV, due to current regulations, such as the license plate or the chassis number, this is not entirely accurate. It should be noted that through the LTE, additional data is added to the vehicle register, primarily related to mileage, the type of repairs/maintenance, the workshop where they are carried out, the date, and even whether it involves an accident. These additional data, which as detailed are associated with the identifiable owner of the vehicle, are not currently included in the information that the RGV mandates to be included in the vehicle register.

The result is that a distinct and separate data processing activity (collection and transmission of data to the DGT by a workshop (third party) and consultation by third parties) derived from the LTE is added, which according to the DGT is also integrated into the Register of Processing Activities of the same Vehicle Register, when the regulation governing it, the RGV, does not mention these data as part of the Vehicle Register, neither mandatorily nor voluntarily.

Despite the DGT's statement, the truth is that in the RAT of the RV there is no mention of this category of subject-workshop from which the data is collected, nor is it seen that it is obliged to provide them to the DGT, nor of the object: the repairs or maintenance/mileage.

VI Data Processing/Legitimizing Basis

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Regarding this data processing activity, the purported legitimizing basis detailed by the DGT must also be examined.

The DGT states that “the LTE is a passive security element, based on public interest, the DGT may request affiliated workshops to provide the previously indicated data. The workshop may only transfer such data when the user has expressly authorized it, usually by checking a box on the work order.” It has also added in this explanation in allegations to the proposal that the vicissitudes subsequently suffered by the vehicle or its ownership are found in the RV, considering voluntary repairs, maintenance, and mileage carried out by the vehicle owner for personal purposes to be included by analogy. Traffic regulations expressly govern changes of ownership that access the RV, but not the vicissitudes of the vehicle. According to the DGT, this data processing is justified as it involves technical-level data and impacts road safety, thus understanding that it should also be integrated into the RV.

Taking the above into account, the respondent stated that the basis for legitimization would be that of public interest (Article 6.1.e) of the GDPR. However, additional information about a vehicle would only be included based on the workshop and on the condition that the customer gives their express consent, so it cannot be said that this processing is “necessary” for the public interest pursued as required by Article 6.1.e) of the GDPR.

Article 6 states: “1. Processing shall be lawful only if at least one of the following applies:

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller.”

The GDPR regarding the aforementioned article adds:

“3. The basis for the processing referred to in paragraph 1, letters c) and e), shall be laid down by:

a) Union law, or

b) the law of the Member States applicable to the controller.

The purpose of the processing shall be determined in that legal basis or, in relation to the processing referred to in paragraph 1, letter e), shall be necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller. This legal basis may contain specific provisions to adapt the application of the rules of this Regulation, including, among others: the general conditions governing the lawfulness of processing by the controller; the types of data subject to processing; the affected data subjects; the entities to which personal data may be communicated and the purposes of such communication; the limitation of purpose; the retention periods for the data, as well as the operations and procedures of processing, including measures to ensure lawful and fair processing, such as those relating to other specific processing situations under Chapter IX. Union law or the law of the Member States shall pursue a public interest objective and shall be proportionate to the legitimate aim.

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pursued.

On the other hand, Article 8 of the LOPDGDD is titled “Processing of data by legal obligation, public interest or exercise of public powers,” and in its section 2, it states that:

“2. The processing of personal data may only be considered based on the fulfillment of a mission carried out in the public interest or in the exercise of public powers conferred to the controller, under the terms provided in Article 6.1 e) of Regulation (EU) 2016/679, when it derives from a competence attributed by a norm with the rank of law.”

This Spanish Agency for Data Protection has had the opportunity to analyze the legal basis for data processing by public administrations in its Legal Reports 108/2018, 155/2018, and 175/2018. In these reports, it is stated that:

“The Public Administration is bound by the principle of legality, so that, unlike individuals, it can only carry out what the legal system expressly allows. This is the meaning of what is provided in Articles 9.1

and 103 of the Constitution, so that when the law and the right have not attributed to the Administration the corresponding powers to act in a certain situation, that action cannot be carried out unless the legal system previously attributes those powers. Therefore, there is no empty space where the Administration can act in the absence of law. This is what has been referred to as the doctrine of the positive binding of the Administration to legality (García de Enterría). Consequently, for the Administration to act, it requires prior legal authorization (understood here as regulatory authorization). And this applies whether the Administration acts in the realm of public law or private law. Thus, we can see that even in the latter realm, where it would act on the same level as individuals, the Administration needs a norm that empowers it to act.”

“The data processing that the Administration needs to carry out for such purposes would, in principle, have as its legitimizing legal basis the very basis established in Article 6.1.e) of the GDPR, that is, that the processing must be necessary for the fulfillment of the mission carried out in the public interest, since the Administration is not only positively bound to the law and the right in such a way that it cannot act without it or against it, but also for that same reason all its actions are guided, in broad terms, by the public interest, even if its actions take place in the realm of private law.”

Therefore, for the processing to be covered by Article 6.1.e) of the GDPR, it is required that a norm with the rank of law attributes the competence. However, the LSV does not contain any explicit provision regarding the incorporation of data into the Workshop Book. For this reason, the requirement provided in the LOPDGDD is not met.

Given the potential intrusive effects on the fundamental right affected that result from the processing of personal data subject to analysis reflected in the LTE, it must be considered that the mission or task of public interest must be provided for by a norm of legal rank, must have a clear basis in the law, sufficiently specific and clear when defining the type of data processing that may be allowed to derive clearly and predictably from that law.

Thus, for the processing of personal data to be covered by Article 6.1.e) of the GDPR, it is required that a norm with the rank of law attributes the competence,

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competence that, in accordance with the principle of positive binding of the Administration to the law, may only be exercised in the terms and within the limits in which it has been attributed by said legal norm and, where applicable, by the regulatory provisions that develop it. The DGT has competencies in the field of road safety, which can be related in terms of the effects on it being increased if more inspections or maintenance are promoted for vehicles, as can be inferred from the law. The same could be noted regarding the prevention of odometer fraud. The connection with the matter of improving transparency in private vehicle sales as a guarantee if data is available in the LTE would be an element that should be included in the law, considering that a public function would intervene in a private matter, and it is not clearly inferred from the LSV or its regulatory framework. The same could be said about specific repairs of accidents, which may affect the insurance sector.

The DGT's argument regarding the interest or mission of public interest falls apart on its own basis, from the moment that such a law that anticipated public interest for workshops to transfer data should specify that associated workshops must send the data, and non-associated ones would not have to do so, aspects that are at odds with public interest itself. In this case, it is also not proven that there is any norm establishing that the type of data and the object of those included in the LTE must be part of the Vehicle Register, as these are strictly defined by their inclusion in the annexes of said norm which does not extend to the elements of repair/maintenance/kms/accidents in workshops. On the other hand, the association of workshops without which the system would not function is voluntary, and if the norm were interpreted in such a way that those repairs/maintenance/mileage/accidents formed part of the RV, it would not make sense that only associated workshops provided them. A logical consequence is that since there is no norm anticipating public interest, there are no elements that could specifically form part of the configuration of data processing provided for in Article 6.3 of the

GDPR.

Thus, it follows that the regulatory norm of the vehicle register does not meet the requirement to collect and process the data included in the LTE.

Moreover, from the moment it is based on the premise that it is the customers who keep or maintain the vehicles that configure and decide the processing, it also does not allow for consideration of public interest in what corresponds to them, weakening the note of necessity of the processing required by this legitimizing basis.

On the other hand, it should be noted that the voluntary nature of the participation of collaborating workshops in the current "Workshop Book" system excludes that the basis of legitimization could be public interest.

Finally, regarding the alleged supposed public interest, it is diminished as a result of the functioning of the system through the consultation in the Register. The guaranteeing result that is intended and the one obtained from the consultation method of the register is relative. Starting from the premise that if in the "complete report" of the vehicle, no data related to the maintenance/repair of the vehicle appears - it is because that data does not exist - the individuals seeking a supposed guarantee when acquiring a vehicle pay the fee, which is also recommended by the DGT, but they are unaware if their consultation will contain the elements of the supposed repairs/maintenance of the LTE. When extracting the report, it may be that it does not...

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contain such data. Nor can the payment of the vehicle report fee, which may contain LTE data, be related to the free nature of the reduced report that will not contain such data in any case, as it would be linked to the implementation and promotion of measures that would favor positive actions for road safety derived from a mission of public interest due to the onerous nature configured for access to it. Therefore, the thesis regarding the processing of LTE data by workshops based on public interest or mission in public interest cannot prosper and would not meet the requirements to accommodate the aforementioned legitimizing basis that would legitimize the processing, given that, as the measure is implemented, its necessity is not revealed either.

Regarding the customer's consent as a basis for legitimization for the processing of data related to the repair/maintenance/mileage/incidents of the vehicle owned by them, the GDPR defines it in its Article 4.11, which states:

“‘consent of the data subject’: any freely given, specific, informed, and unambiguous indication of the data subject's wishes by which they, by a statement or by a clear affirmative action, signify their agreement to the processing of personal data relating to them;

Furthermore, Article 7 of the GDPR states:

“Conditions for consent

1. When the processing is based on the consent of the data subject, the controller shall be able to demonstrate that the data subject has consented to the processing of their personal data.
2. If the consent of the data subject is given in the context of a written declaration that also relates to other matters, the request for consent shall be presented in such a way that it is clearly distinguishable from the other matters, in an intelligible and easily accessible form, and using clear and plain language. No part of the declaration which constitutes an infringement of this Regulation shall be binding.
3. The data subject shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. Before giving consent, the data subject shall be informed thereof. It shall be as easy to withdraw consent as to give it.
4. When assessing whether consent has been freely given, account shall be taken, as far as possible, of whether, among other things, the performance of a contract, including the provision of a service, is conditional on consent to the processing of personal data that is not necessary for the performance of

that contract.”

The incorporation of the vehicle and its owner's data, as provided by the RV in the Road Safety Law and the Traffic Regulation, does not require the consent of the vehicle owner, as such requirement is stipulated by that regulation. According to the DGT, the data on repairs/maintenance/mileage/incidents are aggregated to the processing operation “vehicle registration,” which considers compliance with a legal obligation as the basis for legitimization, Article 6.1.c) of the GDPR. However, to enhance this vehicle registration with data from the processing derived from the LTE, the DGT resorts to the basis of consent and, subsidiarily, to the fact that no personal data is being processed. This second avenue has been abandoned as indicated in the

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Legal Basis III, the reference to the supposed consent as a means of legitimizing the processing of data from the LTE project is examined.

It must be taken into account that the processing activity not only consists, when the client gives their consent as a private client of the workshop for their data to go to the RV of the DGT, but that once in this, as an administered party, the owner of a vehicle will appear linked by this legal relationship of administered party, being able to be consulted by third parties in the RV, something to which the client cannot initially oppose. As an observation, it seems difficult for the vehicle owner themselves to consent to the notation in said RV that their vehicle has been repaired due to an accident. It should also be noted that the DGT would be expanding the scope of the legal publicity of access to the RV, which currently does not contemplate the data of the LTE through the obtaining of consent arising from a private workshop-client relationship. If access to a public database is mandatory regarding the data collected from the client in the LTE operations, it cannot be said that they can provide consent on that aspect, as its incorporation into the public vehicle register is mandatory. Thus, the free provision of consent regarding a part of the processing would be conditioned. This would already be sufficient to understand that consent in this case is not an adequate legal basis for the collection and processing of data related to the LTE, as the requirement of freedom of consent is not met.

Additionally, when requesting consent, a data controller has the obligation to assess whether they will comply with all the requirements to obtain valid consent. If obtained in full compliance with the GDPR, consent is a tool that gives data subjects control over whether their personal data will be processed or not. Otherwise, the control of the data subject becomes illusory and consent will be an invalid basis for processing, making the processing activity illegal.

The obtaining of consent must be subject to rigorous requirements, as it pertains to the fundamental rights of the data subjects and the data controller wishes to carry out a processing operation that would be illegal without the consent of the data subject. Furthermore, obtaining consent does not negate or diminish in any way the obligation of the data controller to respect the principles enshrined in the GDPR, especially Article 5 of the GDPR regarding fairness, necessity, and proportionality, as well as data quality. Even if the processing of personal data is based on the consent of the data subject, this would not legitimize the collection of data that is not necessary in relation to a specific purpose of processing and is fundamentally unfair.

Consent must be specific and in accordance with Article 5, paragraph 1, letter b) of the GDPR, the obtaining of valid consent is always preceded by the determination of a specific, explicit, and legitimate purpose for the intended processing activity. The need for specific consent in combination with the notion of purpose limitation set forth in letter b) of paragraph 1 of Article 5 serves as a safeguard against the progressive expansion or confusion of the purposes for which the data is processed, once a data subject has accepted its collection.

Specific consent can only be obtained when data subjects are specifically informed about the intended purposes of the use of the data concerning them.

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Consent must also be informed, based on Article 5 of the GDPR, the requirement for transparency is

one of the fundamental principles, closely related to the principles of fairness and legality. Providing information to data subjects before obtaining their consent is essential for them to make informed decisions, understand what they are agreeing to, and, for example, exercise their right to withdraw their consent. If the data controller does not provide accessible information, user control becomes illusory and consent will be an invalid basis for processing.

In this case, the workshops associated with the LTE system request consent, which may or may not be granted. It should be noted that not all workshops are associated with the LTE, nor do all workshops obtain consent from all clients. In any case, it should be specified in the information provided to the data subject which data they consent to being transferred, the purposes, and the disclosures.

However, the workshops do not obtain informed consent because they do not provide the necessary and minimum information. This would include: purpose of processing, identity of the controller, category of data, and a description of the rights of the data subject, including the possibility of withdrawing consent, in accordance with what is stated in point 36 of the “Guidelines on Transparency under the GDPR,” dated 29/11/2017, WP 260. Vehicle owners are also not free, as no procedure has been established for them to withdraw consent that ensures it is as easy to withdraw consent as it is to give it.

The DGT, for its part, in its allegations has defined its position that it does not require obtaining the consent of the vehicle owner despite an initial statement admitting that it should be obtained by the workshops. In this case, the DGT, in addition to what has already been pointed out, for the processing of the data of the vehicle owner who goes to a workshop to preserve or maintain their vehicle transferred to the LTE, cannot rely on consent because the consent obtained does not meet the validity requirements of being informed, specific, and free. All of this is based on and conditioned to the fact that a public data controller such as the DGT is not in the same legal position as the vehicle owner.

In practice, the DGT shows no relationship with the clients who provide consent, nor does it ensure through the workshops that the legally established information is provided, nor does it verify the obtaining of the consents obtained. It also does not take responsibility for their accuracy, claiming that they have not been obtained by it. There is no indication that it has or could have any established protocol aimed at this end, either on its own initiative or agreed upon with the workshops.

Therefore, the legitimizing basis of consent is not valid for the intended processing of the LTE.

Regarding the legitimate interest of third parties who will acquire the vehicle or the knowledge for its valuation, which the DGT claims, in accordance with Article 6.1(f) of the GDPR which states:

“Processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.”

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The provisions in paragraph f) of the first paragraph shall not apply to the processing carried out by public authorities in the exercise of their functions.”

It follows that the respondent cannot process new data with the aim of transferring it to third parties who have a legitimate interest, as for such transfer to be lawful, it is necessary first that the obtaining and recording of the data being communicated is covered by a basis of legitimacy; therefore, the respondent does not demonstrate a legitimizing basis for the processing of the data of the vehicle owners whose vehicles are repaired or maintained by associated workshops and are transferred to the DGT in the LTE system. Thus, it is considered that Article 6.1 of the GDPR is infringed by the respondent, who is responsible for the processing of this data.

The infringement is contained in Article 83.5 of the GDPR, which states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a

maximum of 2% of the total global annual turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;" For the purposes of calculating its statute of limitations, the LOPDGDD indicates in its Article 72.1.b) "1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following violations are considered very serious and shall be subject to a three-year statute of limitations:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679."

VII Processing of data by design

As indicated in the Explanatory Memorandum of Law 3/2018, "the greatest novelty presented by Regulation (EU) 2016/679 is the evolution from a model fundamentally based on compliance control to one that rests on the principle of active responsibility, which requires a prior assessment by the controller or the processor of the risks that the processing of personal data may generate, in order to adopt the appropriate measures based on that assessment."

Article 25.1 of the GDPR states:

"1. Taking into account the state of the art, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity that the processing entails for the rights and freedoms of natural persons, the controller shall implement, both at the time of determining the means of processing and at the time of the processing itself, appropriate technical and organizational measures, such as pseudonymization, designed to effectively apply the principles of data protection, such as data minimization, and integrate the guarantees."

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necessary in the processing, in order to comply with the requirements of this Regulation and protect the rights of the data subjects."

This article has as its antecedent Article 24, which states:

"Responsibility of the data controller. Taking into account the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity to the rights and freedoms of natural persons, the data controller shall implement appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is in compliance with this Regulation. Such measures shall be reviewed and updated as necessary."

Article 25, paragraph 1, stipulates that data controllers must take Data Protection by Design and by Default (DPbDD) into account from the moment they begin to plan a new processing operation. Data controllers shall implement DPbDD prior to processing, and also continuously at the time of processing, regularly reviewing the effectiveness of the chosen measures and safeguards. DPbDD also applies to existing systems that process personal data.

The essential obligation is the application of appropriate measures and necessary safeguards for the effective implementation of data protection principles and, consequently, to protect the rights and freedoms of data subjects from the design stage and by default. The aim is to put into practice the application of measures and internal procedures that effectively guarantee and enforce the principles of data protection and the rights of the affected individuals, with basic or common minimums and specific modifiable additions depending on the risk and nature of the data. This translates into concrete strategies and procedures defined at the level of the data controller, as well as ensuring the effectiveness of such measures (monitoring, internal and external audits, etc.). The intended outcome is that having implemented effective measures from the design stage aimed at observing the material principles of Data Protection would make a breach of the regulation less likely.

The appropriateness of the measures must be decided on a case-by-case basis. It is the responsibility of the data controllers to make such decisions, following, where applicable, the guidelines published by national Data Protection authorities and the Article 29 Working Party, now the European Data Protection Board. Regarding the specific applicable measures, they must determine whether, based

on the facts and circumstances of each particular case, with special attention to the risk of processing and the types of data.

The principle of privacy by design is a demonstration of the shift from reactivity to proactivity and a direct manifestation of the risk-based approach imposed by the GDPR. It stems from proactive responsibility, imposing that, from the earliest stages of planning a processing operation, this principle must be considered: the data controller, from the moment a potential processing of personal data is designed and planned, must determine all elements that constitute the processing, in order to effectively apply the principles of data protection, integrating the necessary safeguards into the processing with the ultimate aim of, in compliance with the provisions of the GDPR, protecting the rights of the data subjects. Thus, regarding the risks that may be present in the processing, the data controller shall carry out an analysis and detection exercise of the risks throughout the entire processing cycle of the data.

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data, with the primary and ultimate purpose of protecting the rights and freedoms of the interested parties, and not only when the processing actually takes place.

This is expressed in the Guidelines 4/2019 of the EDPB regarding Article 25 Data Protection by Design and by Default, adopted on 20/10/2020. In the aforementioned Guidelines, it is stated that:

“35. The ‘moment of determining the means of processing’ refers to the period of time in which the controller is deciding how the processing will be carried out and how it will occur, as well as the mechanisms that will be used to carry out such processing. In the process of making such decisions, the data controller must assess the appropriate measures and guarantees to effectively apply the principles and rights of the interested parties in the processing, and take into account elements such as risks, the state of the art, and the cost of implementation, as well as the nature, scope, context, and purposes. This includes the moment of acquiring and implementing the software and hardware and the data processing services.

36. Considering Data Protection by Design and by Default from the outset is crucial for the proper application of the principles and for the protection of the rights of the interested parties. Furthermore, from a cost-effectiveness perspective, it is also in the interest of the data controllers to take Data Protection by Design and by Default into consideration as early as possible, as it may later become difficult and costly to introduce changes to already formulated plans and designed processing operations.”

To this end, the data controller must refer to the principles set out in Article 5 of the GDPR when designing the processing, which will serve to assess the effective compliance with the GDPR. Thus, the aforementioned Guidelines 4/2019 of the EDPB stipulate that

“61. To make Data Protection by Design and by Default effective, data controllers must apply the principles of transparency, lawfulness, fairness, purpose limitation, data minimization, accuracy, storage limitation, integrity and confidentiality, and proactive responsibility. These principles are enshrined in Article 5 and Recital 39 of the GDPR.”

The Privacy by Design Guide of the AEPD states that “Privacy by Design (hereinafter, PbD) involves using a risk management and proactive responsibility-oriented approach to establish strategies that incorporate privacy protection throughout the entire lifecycle of the object (whether it is a system, a hardware or software product, a service, or a process). The lifecycle of the object refers to all the stages it goes through, from conception to withdrawal, including the phases of development, production, operation, maintenance, and withdrawal.”

The Guide stipulates that “Privacy must be an integral and indissoluble part of systems, applications, products, and services, as well as of the business practices and processes of the organization. It is not an additional layer or module that is added to something pre-existing, but must be integrated into the set of non-functional requirements from the very moment it is conceived and designed (...) Privacy is born in the design, before the system is operational, and must be guaranteed throughout the entire

data lifecycle.” Therefore, privacy by design, an obligation of the data controller that arises before the system is operational, is not merely an addition that settles on a system built with its back to the GDPR.

Linked to the establishment of a true culture of data protection within the organization, it also implies, due to proactive responsibility, the ability to document

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All decisions made with a "privacy design thinking" approach demonstrate compliance with the GDPR in this aspect as well. The risk-based approach refers directly and immediately to a preventive system aimed at visualizing, concerning the processing of personal data, the risks to the rights and freedoms of individuals. In relation to the risks to those rights and freedoms, risks must be identified, their impact assessed, and the likelihood of their occurrence evaluated. Thus, it is not the data that is protected, but the individuals behind it. The risks to the rights and freedoms of individuals, arising from the processing of personal data, can vary in severity and likelihood and can cause physical, material, or immaterial harm, tangible or intangible consequences, to the rights and freedoms of individuals. Recital 75 of the GDPR and Article 28.2 of the LOPDGDD exemplarily compile some of the risks considered by the legislator, but they are not the only ones. It will depend on the processing and the context in which it is carried out, the personal data processed, the individuals involved, the means used, etc.

In this case, there are several indications of the absence of such technical or organizational measures, which can be summarized as follows:

- The respondent has not implemented the criteria for transparency, the rights, and obligations to which it is subject when collecting and processing the data of vehicle owners who consent to share their data. The DGT only indicates that the origin of the data comes from third parties when it is incorporated into its own platform and displayed in the RV. The exercise of rights over the data that is consented to be shared is also not facilitated. There is no record of adequate information provided to the customer who repairs the vehicle and provides the data regarding the exercise of rights associated with its collection and transfer.
- No reference has been provided regarding the type of agreement or collaboration on which the arrangement with the workshops for the management of the LTE is based, nor the instructions or protocol for verifying the accuracy and truthfulness of the data of the vehicle owners that are collected. The LTE project is primarily based on the content of the DGT's informational websites, with a functioning lacking normative development to support it, and overlooking any issues concerning the vehicle owner.
- There is a lack of risk analysis regarding the quality of the data collected, in order to confront whether the data recorded by the transmission corresponds to that of the actual owners and the license plates of the vehicles.
- Analysis of the role of the workshops in data protection matters.
- Processes implemented by the responsible party to verify that the workshops authorized to use the LTE, whether companies or individuals, meet the requirements and maintain them over time. CETRAA indicated that a registration number in the industrial registry must be introduced, while the DGT stated that the economic activity tax is requested. Ultimately, regarding the documentation that must be collected and verified to ensure that they continue to meet such requirements, updating records of associated entities to prevent entities that appear as associated workshops that have provided data to the LTE from being included, while they are actually engaged in another type of activity.
- Control of the design for accuracy and truthfulness of data, noting records prior to

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the entry into force of the LTE.

All of these evidences contribute to considering that, in the design of the processing operation, the purpose and its content, essential organizational and technical elements were not taken into account

so that, in consideration of the elements involved in the processing and the risks to the rights and freedoms, they could have been identified, evaluated, and measures adopted to mitigate them. Thus, the DGT has been processing personal data without having analyzed the risks to the rights and freedoms of the data subjects, and without adopting the measures to ensure the principle of lawfulness; it does not know the informative clauses through which the workshops collect consent or the information provided to them, nor to observe the principle of accuracy, or those aimed at complying with the principle of transparency, of which the specific article 14 of the GDPR would be a part. The requirement described in Article 25 of the GDPR is that data controllers must integrate data protection into the design of personal data processing and as a default option, and this is applicable throughout the entire processing cycle. The DPIA is also mandatory for processing systems that existed before the GDPR came into force. Controllers must ensure that the processing is systematically updated in accordance with the GDPR.

The infringement of Article 25.1 of the GDPR is contained in Article 83.4 of the GDPR which states: "Violations of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to up to 2% of the total global annual turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43;"

For the purposes of calculating its limitation period, the LOPDGDD states in its Article 73:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following violations are considered serious and shall be subject to a limitation period of two years:

d) The failure to adopt those technical and organizational measures that are appropriate to effectively apply the principles of data protection by design, as well as the non-integration of the necessary guarantees in the processing, in the terms required by Article 25 of Regulation (EU) 2016/679."

VIII Security Measures

Another infringement attributed to the DGT is that of Article 32 of the GDPR, which states:

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"Taking into account the state of the art, the costs of application, and the nature, scope, context, and purposes of the processing, as well as the variable likelihood and severity of risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;

c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;

d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law."

Regarding the options and possibilities provided to workshops by the software application for the

annotation of maintenance/repair data sent through the LTE platform to the DGT, associated workshops can access such data for any vehicle, knowing the license plate or chassis number through which the search is conducted. It would suffice to enter this data to perform their inquiry, and if the vehicle had previous repairs through the LTE system, they could access them, regardless of whether it was the workshop where the previous actions were carried out, "as well as the history of ITV" with the kilometers at that ITV review.

These accesses were made according to the DGT to facilitate their tasks and functions only to the workshops associated with the LTE.

Starting from the aforementioned basis that workshops lack legal authorization to transfer LTE data to the DGT (repairs/maintenance of the vehicle by the owner) based on the legitimacy claimed by the DGT of a public interest, and that the DGT, in accordance with the doctrine of positive binding of the administration to legality, must adjust its actions to what is provided in regulations to act, the workshops would lack authorization to view the data of vehicle owners that carry the

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the same to be repaired at those workshops, given that they are not authorized for that transfer and therefore it makes no sense to facilitate something for which they are not empowered, especially since workshops not associated with the system were not given, nor are they given, the same ease of compliance with tasks through consultation of such data.

It is declared that sending data of the workshops to the LTE of the DGT does not comply with data protection regulations, as there is no legal basis according to data protection regulations, it must be understood that as a third party, it has had and has access to maintenance/repair data of vehicles, which is not in accordance with the current data protection regulations examined in relation to the aforementioned LTE.

The security measure that is being violated is related to this aspect, so the allegations regarding the proposal on the rest of the security elements made by the SG of Mobility and Management lack the ability to undermine any aspect regarding this specific point, which is evidenced not only by the express statement of the respondent but also by the verification on the CETRAA website and the assertion of several workshops.

In the present case, it must be taken into account that the Vehicle Register is a register entrusted to a public entity, in which the data contained therein is collected from the owners of vehicles based on public powers, and with the purposes and limits indicated in Article 2 of the previously transcribed RGV, and concordant, an article that also allows access to the aforementioned RV to interested parties or third parties who have a legitimate and direct interest, which requires case-by-case assessment, without including free, indeterminate accesses, in this case from workshops associated with the LTE system, even if traceability in consultations were available.

That workshops usually access at the request of the data owner does not mean that the configuration of access to the RV for associated workshops complies with confidentiality by allowing access to data of non-customers of the same workshop, due to the lack of technical and organizational measures, since in addition to being an easy means, the license plates remain visible to anyone.

This implies a configuration of accesses by its responsible party, the DGT, which evidences the lack of security measures established in the aforementioned Article 32 of the GDPR.

The infringement is contained in Article 83.4 of the GDPR which states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42 and 43;"

For the purposes of calculating its limitation period, the LOPDGDD states in its Article 73:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, violations that constitute a

substantial breach of the articles mentioned therein are considered serious and shall be subject to a limitation period of two years, and in particular, the..."

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the following:

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679.

IX Activity Register of Processing

The legal basis that the DGT considers for the processing operations related to the vehicle registration is compliance with a legal obligation. Regarding the question posed to the DGT about whether the processing operations related to the LTE are included in the Register of Processing Activities -RAT-, the respondent indicated that they would be included in the RAT of "vehicle registration," and would adhere to the same legitimizing basis referenced for the data, which is compliance with a legal obligation.

In the DGT's RAT, "vehicle registration," the following was prominently noted:

Purpose of Processing: Management of personal data associated with the license plates of registered vehicles

Legal basis (legitimization) GDPR. - Article 6.1. c) the processing is necessary for compliance with a legal obligation applicable to the data controller, mentioning various applicable regulations (LSV, RGV, etc.). Art. 6.1.e) of the GDPR.

Categories of recipients, among others, includes "citizens with a legitimate interest."

Retention period: Data will be retained for as long as necessary to fulfill the purpose for which it was collected and to determine any potential liabilities that may arise from that purpose and the processing of the data. The provisions of the regulations on archives and documentation will apply.

However, there is no mention in this register of any processing operations related to the LTE (repairs/maintenance of vehicles/mileages/accidents), which has a different purpose than that provided for in the Royal Decree governing the RV, considering the intended improvement of road safety and the greater guarantee it would provide for the sale of used vehicles, or to prevent odometer tampering. These purposes are specific and autonomous to this processing operation and, as such, form their own section in the RV, increasing the data that would be contained therein, and therefore should be included in the RAT.

The DGT has violated Article 30 of the GDPR, which states:

1. Each controller and, where applicable, their representative shall maintain a record of processing activities carried out under their responsibility. This record shall contain all the information indicated below:

a) the name and contact details of the controller and, where applicable, the joint controller, the representative of the controller, and the data protection officer;

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b) the purposes of the processing;

c) a description of the categories of data subjects and the categories of personal data;

d) the categories of recipients to whom the personal data have been or will be disclosed, including recipients in third countries or international organizations;

e) where applicable, the transfers of personal data to a third country or an international organization, including the identification of that third country or international organization and, in the case of

transfers referred to in Article 49, paragraph 1, second subparagraph, the documentation of adequate safeguards;

f) where possible, the envisaged time limits for erasure of the different categories of data;

g) where possible, a general description of the technical and organizational security measures referred to in Article 32, paragraph 1.

2. Each processor and, where applicable, the representative of the processor shall maintain a record of all categories of processing activities carried out on behalf of a controller that contains:

a) the name and contact details of the processor or processors and of each controller on behalf of which the processor is acting, and, where applicable, the representative of the controller or the processor, and the data protection officer;

b) the categories of processing carried out on behalf of each controller;

c) where applicable, the transfers of personal data to a third country or international organization, including the identification of that third country or international organization and, in the case of transfers referred to in Article 49, paragraph 1, second subparagraph, the documentation of adequate safeguards;

d) where possible, a general description of the technical and organizational security measures referred to in Article 30, paragraph 1.

3. The records referred to in paragraphs 1 and 2 shall be in writing, including in electronic format.

4. The controller or the processor and, where applicable, the representative of the controller or the processor shall make the record available to the supervisory authority that requests it.

5. The obligations set out in paragraphs 1 and 2 shall not apply to any enterprise or organization employing fewer than 250 persons, unless the processing that it carries out may pose a risk to the rights and freedoms of data subjects, is not occasional, or includes special categories of personal data referred to in Article 9, paragraph 1, or personal data relating to criminal convictions and offenses referred to in Article 10."

In the LOPDGDD, it is developed in its Article 31, which states:

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"1. The controllers and processors of personal data or, where applicable, their representatives must maintain the record of processing activities referred to in Article 30 of Regulation (EU) 2016/679, unless the exception provided for in paragraph 5 applies.

The record, which may be organized around structured sets of data, must specify, according to its purposes, the processing activities carried out and the other circumstances established in the aforementioned regulation.

When the controller or processor has appointed a data protection officer, they must communicate any addition, modification, or exclusion in the content of the record.

2. The subjects listed in Article 77.1 of this organic law shall make public an inventory of their processing activities accessible by electronic means, which shall include the information established in Article 30 of Regulation (EU) 2016/679 and its legal basis.

The infringement is contained in Article 83.4 of the GDPR, which states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to up to 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43;"

For the purposes of calculating its limitation period, the LOPDGDD states in its Article 74:

"Other formal infringements of the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 shall be considered minor and shall prescribe after one year, particularly the following:

l) Having a record of processing activities that does not incorporate all the information required by Article 30 of Regulation (EU) 2016/679."

The defendant argued that it cannot go into such detail as to record the treatments derived from the

LTE that it understands are incorporated into the RV as they are also data regarding the vicissitudes suffered by vehicles. However, this is an essential element in the information that would affect users of the system, including the owners of vehicles undergoing repairs, considering that a processing activity corresponds to a purpose regarding the personal data of a specific group of individuals; therefore, the new purpose of the processing should have been incorporated into the RAT. Furthermore, compliance with Article 30 of the GDPR also requires that the categories of personal data being processed be described, a matter that the RAT of the DGT should have contemplated regarding the new data, all circumstances that are required of the controllers to demonstrate compliance with the GDPR. This lack of essential elements is configured as minor, unlike if the RAT were not available at all, which is classified as serious under the LOPDGDD.

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X Sanction and Adoption of Measures

Article 58.2 of the GDPR provides as follows: “Each supervisory authority shall have all of the following corrective powers indicated below:

“d) to order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time;”

f) to impose a temporary or definitive limitation on processing, including its prohibition;

[...]”

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this section, depending on the circumstances of each particular case;”

The imposition of any of these measures is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

Considering that the defendant is a public entity, Article 83.7 of the GDPR states:

“Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

The regime applicable to such entities is limited in Article 77 of the LOPDGDD, which states:

“1. The regime established in this article shall apply to the processing for which they are controllers or processors:

[...]”

“c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that comprise the Local Administration.

d) Public bodies and entities of public law linked to or dependent on the Public Administrations.”

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution sanctioning them.

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the same with warning. The resolution will also establish the measures that should be adopted to cease the conduct or correct the effects of the infringement that may have been committed.

The resolution will be notified to the responsible party or data processor, to the body to which they hierarchically depend, if applicable, and to the affected individuals who qualify as interested parties, if applicable.

3. Without prejudice to what is established in the previous section, the data protection authority will also propose the initiation of disciplinary actions when there are sufficient indications for it. In this case,

the procedure and the sanctions to be applied will be those established in the legislation on disciplinary or sanctioning regimes that are applicable.

Likewise, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that have not been duly addressed is proven, the resolution imposing the sanction will include a reprimand naming the responsible position and will order publication in the corresponding Official State or regional Gazette.

4. The resolutions relating to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article will be communicated to the Ombudsman or, where appropriate, to the analogous institutions of the autonomous communities. In the present case, it is considered that as implemented and described, the mechanism of the LTE project, the system and means established, the DGT as the data controller that includes personal data of the vehicle owner who comes to repair/maintain the vehicle and from which the workshops have provided such data to the DGT, including mileage and accident data of the vehicles, does not comply with the current regulations of the GDPR or the LOPDGDD, incurring in the aforementioned infringements.

Given the detected faults in the data processing operations that are part of the LTE, in the section of the Vehicle Register, the WORKSHOP BOOK section, as long as there is no legitimization of the analyzed processing, the continuation of the use of the system, the transfer of data by the workshops, and the delivery to the requesters of complete vehicle reports containing such data must be suspended, as they do not comply with the GDPR and LOPDGDD. In the same sense, the use of the IDEX data exchange and access tool from the workshops to the DGT must be suspended, as well as the use of the platform by the workshops, also preventing access in consultation mode by license plates or chassis of the vehicles by the associated workshops.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, which may motivate such conduct to initiate a further sanctioning administrative procedure.

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In order to guarantee the rights and freedoms of data subjects, and considering the need and justification to adopt corrective powers as determined in the dispositive part, Article 90.3 of the LPCAP indicates that “the resolution that concludes the procedure shall be executive when no ordinary appeal can be lodged against it in the administrative route, and precautionary measures necessary to ensure its effectiveness may be adopted in the same as long as it is not executive.”

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection,

RESOLVES:

FIRST: TO SANCTION the GENERAL DIRECTORATE OF TRAFFIC, with NIF Q2816003D, with a warning for each of the following infringements of the GDPR:

- Article 6.1 of the GDPR, in accordance with Article 83.5 a) of the GDPR and for the purposes of the statute of limitations of the infringement classified as very serious in Article 72.1.b) of the LOPDGDD.
- Article 25 of the GDPR, in accordance with Article 83.4 a) of the GDPR and for the purposes of the statute of limitations of the infringement classified as serious in Article 73.d) of the LOPDGDD.
- Article 32 of the GDPR, in accordance with Article 83.4 a) of the GDPR and for the purposes of the statute of limitations of the infringement classified as serious in Article 73.f) of the LOPDGDD.
- Article 30 of the GDPR, in accordance with Article 83.4 a) of the GDPR, and for the purposes of the statute of limitations of the infringement classified as minor in Article 74.l) of the LOPDGDD.

SECOND: TO IMPOSE, in application of Article 58.2.f) of the GDPR, a “temporary limitation of

processing” on the GENERAL DIRECTORATE OF TRAFFIC, with NIF Q2816003D, until a legal provision is adopted that legitimizes the processing of data in the Workshop Book that encompasses the entire system of collection, registration, and use of data of the LTE system, in order to safeguard the rights and freedoms of vehicle owners.

The limitation measure must be carried out within a period of THREE MONTHS, counted from the notification of this resolution, and for this purpose, it must justify to this Spanish Agency for Data Protection the compliance with this requirement.

Failure to comply with the aforementioned temporary limitation may result in the commission of an infringement of Article 83.6 of the GDPR.

THIRD: NOTIFY this resolution to the GENERAL DIRECTORATE OF TRAFFIC.

FOURTH: COMMUNICATE this resolution to the OMBUDSMAN, in accordance with the provisions of Article 77.5 of the LOPDGDD.

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FIFTH: This resolution shall be executive once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPCAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPCAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPCAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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